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Deportation Deficiencies and Membership Guidelines

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DEPORTATION DEFICIENCIES AND MEMBERSHIP GUIDELINES

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ABSTRACT

The power to remove noncitizens from the country is a defining characteristic of our immigration system that is fraught with theoretically and practically inconsistencies. Hundreds of thousands of legal residents and undocumented people are deported every year, which imposes tremendous costs on entire communities while challenging American ideals of fair treatment and accountability. Specifically, the legal decisions to deport a noncitizen are plagued with disproportionate outcomes and wide disparities. These problems have exacerbated the mass deportation crisis of the modern era in ways that delegitimize the deportation system and question the purposes of immigration law as a foundation of nation building.

Building on existing theories that immigration functions as a body of law that governs national membership, this Article argues that our deportation system falls far short of this purpose. Problems of disproportionality, unfettered discretion, and nonuniformity across multiple states are systemic legal failures to properly define who is a member in the American community. This Article further theorizes how to measure membership more effectively through the types of proxies that immigration law respects and that social communities rally around in an effort to dismantle the mass deportation system by bringing the law back in line with the community values it was meant to support.

This Article intervenes with a novel proposal to develop Membership Guidelines that propose a clear strategy to mitigate the systemic arbitrariness and abuses of the deportation system. This thought project that highlights the values of national membership considers proxies of time, space, and severity while also considering administrative advantages of rebooting the deportation system through institutional design.

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INTRODUCTION

Deportation has a membership problem. The strictures of immigration law has produced a system of mass deportation that removes hundreds of thousands and noncitizens each year based on their legal status, rather than their contributions to the community.¹ The case of Kilmar Ábrego García has captured headlines as an archetype of this problem,² representing the millions of people that have navigated the deportation system over the past generation that think of themselves more as an American than a member of the country of their birth.³ At a time when presidential administrations boast about their policies to deport large numbers of noncitizens,⁴ this Article identifies systemic problems with the mass deportation system. This Article conceptualizes these disproportionate and disparate outcomes as system failures to properly account for national membership and proposes a novel reimagining of our deportation system that reestablishes membership principles. These Membership Guidelines would narrow the scope of an overbroad system while also refocusing deportation as a way of cultivating the next generation of the American community.

¹ See SARAH TOSH, THE IMMIGRATION LAW DEATH PENALTY: AGGRAVATED FELONIES, DEPORTATION, AND LEGAL RESISTANCE 3 (2023) (discussing annual deportations and the United States's status as the world leader in deportation rates).

² Ábrego García fled gang violence in El Salvador when he was sixteen-years-old and lived in the U.S. for the past fifteen years. He was recently deported by the Trump administration on accusations that he was a gang member, but then returned to the U.S. by court order, only to be charged with drug trafficking. He is married to a U.S. citizen and has two U.S. citizen children. As of the writing of this Article, his criminal and immigration case are ongoing. See Mikeie Honda Reiland, *A Comprehensive Timeline of the Kilmar Abrego Garcia Case*, NASHVILLE BANNER (Jan. 7, 2026), <https://nashvillebanner.com/2026/01/07/kilmar-abrego-garcia-trump-administration-tennessee/>.

³ See DANIEL KANSTROOM, AFTERMATH: DEPORTATION AND THE NEW AMERICAN DIASPORA 5 (2012) (arguing that deporting members of the American community creates a diaspora of deportees); Michael L. Light & Isabel Anadon, *Immigration and Violent Crime: Triangulating Findings across Diverse Studies*, 103 MARQ. L. REV. 939, 951 (2020) (finding that over 3.6 million people were deported between 2008 and 2018, which is 1.2 million more than were deported during the entire 20th Century); Asad L. Asad, *Deportation Decisions: Judicial Decision-Making in an American Immigration Court*, 63 AM. BEHAV. SCI. 1221, 1222 (2019) (“Of the 7.4 million removals logged between 1892 and 2015, half occurred in the decade since 2005.”).

⁴ See, e.g., Tim Rogers, *Obama Has Deported More Immigrants than Any Other President. Now He's Running up the Score*, FUSION (Jan. 7, 2016), <https://www.jezebel.com/obama-has-deported-more-immigrants-than-any-other-presi-1793853940>; Malcom Ferguson, *Trump Brags about Record-High Deportations—but there's One Big Problem*, THE NEW REPUBLIC (Oct. 28, 2025), <https://newrepublic.com/post/202400/trump-deportation-numbers-problem>.

Any attempt to conceptualize and resolve the problems of the deportation system must return to its original purpose to define and enforce national membership.⁵ The mass deportation system targets our neighbors who marry and parent U.S. citizens;⁶ business owners that enrich local economies and employ dozens of workers;⁷ and community leaders who feel obligated to give back to the very communities they grew up in.⁸ ICE's ever-expanding scope of enforcement has targeted high school students, grandmothers gardening outside their homes, pastors, and even asylum seekers waiting for their next hearing.⁹ And yet, even after investing in their communities for years, these people are still deported back to foreign lands that many of them don't even remember. This Article challenges this mass deportation system on the basis of membership theory, whereby a noncitizen's commitments and contributions should be valued on par with their legal status.¹⁰

This Article argues that the mass deportation system is out step with the membership foundations of our immigration system. Mass deportation relies exclusively on a hierarchy of legal statuses that are poor proxies when assessing membership in the national community. Being undocumented is grounds enough for deportation,¹¹ which is difficult to reconcile with the way that undocumented people contribute to our economy, our culture, and the daily lives of American citizens. There are

⁵ See MICHAEL WALZER, SPHERES OF JUSTICE 36–42 (1983) (developing the analogy between immigration policies and various degrees of memberships that exist in neighborhoods, clubs, families, and universities).

⁶ See, e.g., *infra* notes 24, 108, 270, and accompanying text; see also Ana Martinez-Donate, et al., *Between the Lines: A Mixed-Methods Study on the Impacts of Parental Deportation on the Health and Well-Being of U.S. Citizen Children*, 9 MIGRATION & HEALTH 100233 at 1 (2024) (stating that 17.8 million citizen children lived with at least one immigrant parent, and 5.2 million lived with at least one undocumented parent).

⁷ See, e.g., *infra* note 24, and accompanying text; see also *Mass Deportation: Devastating Costs to America, Its Budget and Economy*, AM. IMMIGR. COUNCIL 5 (reporting that there are at least “1 million undocumented immigrant entrepreneurs”).

⁸ See, e.g., *infra* notes 24, 270, and accompanying text.

⁹ See *Congressional Republicans' One Big Beautiful Bill Act Creates an Unaccountable Slush Fund for the Trump Administration's Deportation Force*, CTR. AM. PROGRESS (Sep. 19, 2025), <https://www.americanprogress.org/article/congressional-republicans-one-big-beautiful-bill-act-creates-an-unaccountable-slush-fund-for-the-trump-administrations-deportation-force/> (documenting ICE's enforcement practices that have indiscriminately targeted minority and immigrant communities).

¹⁰ See, Eisha Jain, *Jailhouse Immigration Screening*, 70 DUKE L.J. 1703, 1747 (2021) (arguing the deportation system “must be able to recognize its own members”).

¹¹ 8 U.S.C. § 1182(a)(7)(a)(i) (establishing inadmissibility for people who does not have documentation to be present in the U.S.).

even deportation criteria that justifies deportation if legal residents become too reliant on social welfare programs.¹² In other words, the mass deportation system has become overbroad because legal status does not capture or measure the types of membership qualities that Americans care about when building families, businesses, and communities. When legal status of citizenship or permanent residence becomes the most important linchpin of a person's banishment from the country, the deportation system ends up exiling members of the American national community.

As part of this argument, this Article identifies three systemic failures of the deportation system that contribute to much of membership missteps. First, there are problems of disproportionality where deportation functions as a mandatory minimum sanction that treats the undocumented soccer mom and the terrorist alike. The disproportionality of this system upholds a bright line of American membership and civil rights, whereby everybody who is not a citizen is subject to deportation if they violate immigration law.¹³ Second, immigration judges (IJs) are given enormous discretion at every procedural step of immigration court proceedings, and they also have the discretion to grant or deny a noncitizen's application for deportation relief.¹⁴ This level of unreviewable and nearly unfettered power causes wide disparities between IJs in deportation rates.¹⁵ In essence, the "refugee roulette" of case assignment to an IJ can be just as determinative of the outcome as the merits of the case.¹⁶ Third, interactions between federal immigration law and state law causes many disparate outcomes for noncitizens that have committed similar

¹² 8 U.S.C. § 1227(a)(5) (establishing deportability for noncitizens that have been legally admitted to the country and become a public charge).

¹³ See, e.g., Angela M. Banks, *Proportional Deportation*, 55 WAYNE L. REV. 1651, 1663–67 (2009) (discussing proportionality in punitive damages); Juliet Stumpf, *Fitting Punishment*, 66 WASH. & LEE L. REV. 1683, 1688–89 (2009) (tracking proportionality generally across contract and tort law); Lori A. Nessel, *When Time Stands Still: Eliminating Immigration "Death Sentences"*, 75 SMU L. REV. 369, 407 (2022) (describing proportionality as a "core principle in international law").

¹⁴ See Shoba Sivaprasad Wadhia, *Darkside Discretion in Immigration Cases*, 72 ADMIN. L. REV. 367, 376–401 (2020) (discussing the statutory and practical requirements necessary to fulfill the IJ's responsibility to exercise discretion in various forms of deportation relief).

¹⁵ See, e.g., Jennifer Lee Koh & Shoba Sivaprasad Wadhia, *Deport, Not Court? The U.S. is Already Doing That*, LA TIMES (June 30, 2018, 11:10 AM), <https://www.latimes.com/opinion/op-ed/la-oe-koh-wadhia-deportations-20180630-story.html> (citing studies showing disparities in asylum cases based on IJ assignment).

¹⁶ *Id.* (underscoring the random outcomes of asylum claims according to which IJ is assigned to the case); see also 8 U.S.C. § 1252(a)(2)(B); see also *Patel v. Garland*, 596 U.S. 328, 347 (2022) (holding that federal courts lack jurisdiction to review facts relating to the granting or denying of discretionary immigration relief).

immigration violations. For example, a noncitizen's violations in Pennsylvania can yield a different deportation result than if that same violation was committed across the border in New Jersey.¹⁷ If the immigration system is meant to make national-level decisions about who is allowed to enter the country and who must be removed from it, the differences between state laws should be given little attention when determining national membership.¹⁸

This Article intervenes by learning from the crimmigration literature to theorize a deportation system that takes on the traits of a determinant sentencing regime. The longer a person has been in this country without incident, the less likely they should face deportation. The principle of proportionately would also separate violations into categories of severity. Violations like terrorism and murder would be among the most severe violations because they represent the most heinous rejections of American membership; contrastingly, overstaying a temporary visa or entering the country without inspection would be among the least severe violations. Much like a determinant sentencing grid, deportation would become a measure of these membership principles whereby a person's time and contribution to the community would be factored in with the context of the severity of their immigration violation on an x- and y- axis that would determine the sanction they receive. Deportation would still be available for the most serious violations, but less severe sanctions would also be available for people that have been in the country for longer periods of time and for less serious violations. These Membership Guidelines would be a conceptual step in the right direction as scholars continue to criticize the status quo.¹⁹

This Article proceeds in four parts. Part I begins with the theoretical context that justifies deportation as an enforcement that defines membership. Specifically, it explores themes in how different approaches in crimmigration fit within this membership framework. Part II expands upon the practical impacts of disproportionality, discretion, and

¹⁷ See *infra* notes 186–187 and accompanying text.

¹⁸ See Hiroshi Motomura, *The Curious Evolution of Immigration Law: Procedural Surrogates for Substantive Constitutional Rights*, 92 COLUM. L. REV. 1625, 1626 (1992) (describing immigration law as “the federal law governing the admissions and expulsion of aliens”).

¹⁹ See, e.g., Stumpf, *supra* note 13, at 1684 (arguing for a proportionate deportation system); Wadhia, *supra* note 14, at 410 (arguing for a system of guidelines that could uphold administrative values of “accuracy, consistency among like cases, and transparency” as well as “efficiency”); KANSTROOM, *supra* note 3, at 5 (arguing that accepting some forms of deportation does not foreclose on criticizing the system as a whole).

nonuniformity in the deportation system. By conceptualizing these problems together, the whole turns out to be greater than the sum of its parts as a systemic failure to define and enforce membership. Part III thinks about the design choices of Membership Guidelines that learn from the practical and theoretical treatments in previous parts. Measuring membership requires careful consideration of designing a sentencing grid that mitigates disparities. Part IV adds practicality to this thought project by considering certain administrative costs and benefits of implementing Membership Guidelines. While there are costs to such a transformative change to the deportation system, there are substantial advantages that could be managed by an independent agency similar to sentencing commissions.

As a final introductory thought, there has not been significant reform of substantive immigration law since 1996.²⁰ There has not been significant reform of administrative immigration law since 2003.²¹ This Article takes up the call of the field's leading scholars to innovate in the midst of this drought by identifying "creative and lawful administrative measures that can mitigate the most unjust effects of [the] deportation system."²² In this spirit, the Membership Guidelines serve to understand the problems of deportation decision-making "not as a clash of irreconcilable absolute positions, but more as a nuanced set of choices" that demands theoretical and pragmatic balance.²³

²⁰ TOSH, *supra* note 1, at 69 (referring to the Illegal Immigration Reform and Immigrant Responsibility Act of 1996).

²¹ See Philip Martin and Elizabeth Midgley, *Immigration: Shaping and Reshaping America*, 58 POPULATION BULL. 5, (2003) (describing the major administrative reorganization of immigration into DHS following the 9/11 attacks).

²² Jennifer M. Chacon, *A New Hope: Bringing Justice Back into Removal Proceedings*, 91 NYU L. REV. ONLINE 132, 133 (2016); See KANSTROOM, *supra* note 3, at xi (describing similar goals of deportation reformers to reconceptualize "a deportation system that has become shockingly large, unnecessarily harsh and, in many ways, dysfunctional").

²³ KANSTROOM, *supra* note 3, at 37.

I. THE FOUNDATION OF MEMBERSHIP

Howard B. immigrated from Jamaica when he was 17-years-old. He served in the Navy during Operation Desert Storm. He married a U.S. citizen and was a proud father to children born in the country. He ran his own business and was working towards becoming a citizen. During his naturalization interview, he voluntarily told the interviewer that he had been arrested for possessing marijuana when a small amount was mailed to him nearly twenty years prior. Just a few days later, ICE showed up at his door and dragged him away in the dead of night in front of his children. Howard fought his immigration case for two years in immigration detention before being deported to a country he didn't recognize. Many people petitioned on his behalf, and the state governor issued a pardon for Howard's drug conviction that triggered his deportation. But Howard still had to fight for many years with immigration authorities before being reunited with his family after an 11-year exile.²⁴

The failures of the deportation system can only be fully appreciated by understanding the purposive goals the system was designed to fulfill.²⁵ This Part argues that immigration law is best understood under membership theory. First, it defines membership theory along several divergent branches and overlapping themes to understand its scope and applications to immigration. Second, it describes the deportation system whereby exercising exit policies are a function of removing non-members and those that no longer qualify for membership from the country. Third, it complicates membership theory by filtering it through the lens of crimmigration, which lays the foundation of thinking about the synergies between how criminal law thinks about community membership and how immigration law criminalizes legal status.

A. Defining Membership

Membership theory has become foundational in immigration law for its value in explaining how legal status establish tiers of membership in

²⁴ See Howard Dean Bailey, *I Served My Country. Then it Kicked Me Out*, POLITICO (April 10, 2014), <https://www.politico.com/magazine/story/2014/04/howard-dean-bailey-deported-i-served-my-country-and-then-it-kicked-me-out-105606/>.

²⁵ See KANSTROOM, *supra* note 3, at 29 (stating that defining the “goals of the deportation system” is hard to answer because of the different policy goals at issue); Ruth Ellen Wasem, *Immigration Governance for the Twenty-First Century*, 6 J. MIGRATION & HUM. SEC. 97, 106–112 (2018) (listing the many “complex legitimacy claims” that immigration serves across a host of policy areas).

the national community. Popularized by Michael Walzer's analogy to neighborhoods, families, and social group, membership theory recognizes that law and institutions often establish exclusionary rules as part of defining and protecting membership.²⁶ Homeowners' associations, churches, and even bowling leagues are just a few examples of organizations that have specific rules that govern who can be and currently is a member; and these memberships also have the authority to enforce these rules by kicking current members out of the group. Membership theory, by way of this simplified analogy, tries to make sense of the overly complex and nuanced rules of immigration policy in the United States and other sovereign nations that create legal rules that define political and social membership. Consequently, the immigration decisions of entry, exit, and enforcement all work together towards that end.²⁷

1. Sociocultural Values

From this foundation, membership theory splits into different ideological traditions. The first focuses on social and cultural criteria, whereby national membership is judged according to whether a person's cultural identity and social practices are congruent with the membership group.²⁸ In the social world, these criteria could manifest as economic exclusion from expensive clubs, religious exclusion from churches, and even nationality exclusion based on heritage.²⁹

This sociocultural membership theory depicts some of the most controversial aspects of America's checkered immigration history. From

²⁶ WALZER, *supra* note 5, at 36–42 (developing an analogy between immigration admission policies and neighborhoods, clubs, families, and universities); Juliet Stumpf, *The Crimmigration Crisis: Immigrants, Crime, and Sovereign Power*, 56 AM. L. REV. 367, 377 (2006) (discussing membership theory that explains immigration's power to "include individuals in the social contract or exclude them from it").

²⁷ See Kit Johnson, *Theories of Immigration Law*, 46 ARIZ. L.J. 1211, 1214 (2014) ("Immigration law is fundamentally about membership in a political state."); Jain, *supra* note 10, at 1747 ("The laws that determine admissions, status changes, and removal construct the parameters of membership in the United States.").

²⁸ See Noah E. Friedkin, *Social Cohesion*, 30 ANN. REV. SOC. 409, 409–11 (2004) (discussing social cohesion as part of the sociological and psychological literature that measures membership through turnover rates, group identification, proportion of members contributing to tasks, and other factors).

²⁹ See, e.g., Michael Forsythe, *et al.*, *How China Influences Elections in America's Biggest City*, N.Y. TIMES (Aug. 25, 2025), <https://www.nytimes.com/2025/08/25/nyregion/china-consulate-new-york-elections.html> (discussing the influence of "hometown associations" in New York City, where people from China that are from the same town or province can meet); *About Us*, IRISH NETWORK NEW YORK CITY (last visited Jan. 25, 2026), <https://irishnetworknyc.com/> (describing a networking and social club for the Irish diaspora in New York City).

colonial times, various cities and territories excluded residents on the basis of religion if they did not conform to the dominant protestant belief system.³⁰ They excluded Jews, Catholics, and many Protestants from becoming members in these burgeoning communities.³¹ Among our young Republic's first acts was establishing that only "free white persons" were eligible for naturalization to become citizens. From 1790 until 1952, naturalization was limited by race.³² In 1882, Congress passed the infamous Chinese Exclusion Act that barred the entry of Chinese laborers.³³ In the twin cases of *Chae Chan Ping*³⁴ and *Fong Yue Ting*,³⁵ the Supreme Court upheld the statute and its progeny by reasoning that Chinese people were less trustworthy and were less likely to be assimilated into American culture.³⁶ In the 1920s, Congress passed quotas that limited overall immigration numbers. These quotas, in practice, allowed higher relative numbers from Western European nations at the expense of Eastern European nations and Asian countries.³⁷ Legislators

³⁰ See DAVID M. REIMERS, UNWELCOME STRANGERS: AMERICAN IDENTITY AND THE TURN AGAINST IMMIGRATION 5–7 (1998) (describing the early years of the American colonies and the discrimination that religious minorities faced); Tina Al-Kharsan & Azadeh Shahshahani, *From the Chinese Exclusion Act to the Muslim Ban: An Immigration System Built on Systemic Racism*, 17 HARV. L. & POL'Y REV. 131, 134 (2022) (describing the plight of Irish Catholics in the 1800s).

³¹ See REIMERS, *supra* note 30, at 5.

³² Naturalization Act of 1790, ch. 3, 1 Stat. 103 (repealed 1795) (stating that "[a]ny alien being a free White person . . . may be admitted to become a citizen . . ."); see also Gabriel J. Chin, *A Nation of White Immigrants: State and Federal Racial Preferences for White Noncitizens*, 100 B.U. L. REV. 1271, 1274 (2020) (discussing the racial exclusion of non-White noncitizens in naturalization law) Persons of African descent were allowed to naturalize in 1870. See Naturalization Act of 1870, ch. 254, § 7, 16 Stat. 254, 256. Persons of races indigenous to the Western Hemisphere were allowed to naturalize in 1940. See Nationality Act of 1940, ch. 876, § 303, 54 Stat. 1137, 1140, repealed by Immigration and Nationality Act of 1952, ch. 477, 66 Stat. 163. Persons of Chinese descent were allowed to naturalize in 1943. See Chinese Exclusion Repeal Act, ch. 344, § 3, 57 Stat. 600, 601 (1943).

³³ Chinese Exclusion Act, ch. 126, § 1, 22 Stat. 58, 59 (1882) (repealed 1943).

³⁴ 130 U.S. 581 (1889).

³⁵ 149 U.S. 698 (1893).

³⁶ See 130 U.S. at 605–08; 149 U.S. at 722–25. See also Gabriel J. Chin, *Segregation's Last Stronghold: Race Discrimination and the Constitutional Law of Immigration*, 46 UCLA L. Rev. 1, 4 n. 15, 13 (1998) (analyzing the implications of *Chae Chan Ping* and *Fong Yue Ting*, and their progeny that upheld the principle of exclusion and deportation expressly on the basis of race).

³⁷ See Mae M. Ngai, *The Architecture of Race in American Immigration Law: A Reexamination of the Immigration Act of 1924*, 86 J. AM. HIST. 67, 69 (1999) ("The central theme of that process was a race-based nativism, which favored the "Nordics" of

believed that this would help to maintain the country's dominant Western White European racial composition of the country.³⁸ It wasn't until the 1965 Immigration Act that Congress eliminated these quotas as an attempt to excise racism and xenophobia from immigration law during the Civil Rights era.³⁹

This stamp of ethnoreligious nationalism still remains a part of modern rhetoric. Popular proponents of this ethnoreligious model include scholars such as Samuel Huntington and politicians like Pat Buchanan, who have separately argued that America's Anglo-Protestant culture is essential to the country's survival.⁴⁰ They argue that homogeneity promotes social cohesion and political engagement, both of which have been lost because of the influx of cultures that cannot assimilate to dominant American values. This includes identity markers of "race, ethnicity, culture (most notably language and religion), and ideology."⁴¹ President Donald J. Trump has also shown his affinity towards this ideology. He has lamented on why America allows so many people from "shithole" countries to immigrate here.⁴² He has said that immigrants are poisoning the blood of America, using similar language to *Mien Komppf* that referred to racial and ethnic purity.⁴³ He claimed that "there is great hatred towards Americans by large segments of the Muslim population," and that he sought to protect

northern and western Europe over the "undesirable races" of eastern and southern Europe.").

³⁸ See Maddalena Marini, *The 1921 and 1924 Immigration Acts a Century Later: Roots and Long Shadows*, 109 J. AM. HIST. 271, 272 (2022).

³⁹ See Timothy J. Hatton, *United States Immigration Policy: The 1965 Act and its Consequences*, 117 SCAND. J. ECON. 347, 354–56 (2015) (tracking immigration numbers after the 1965 Act, showing a steady increase in immigration population, especially of Mexican Americans); Sheldon A. Evans, *Illiberal Immigration Inconsistencies*, 70 ST. LOUIS L. REV. __, at *15–16 (forthcoming 2026) (discussing the 1965 Act as part of the Great Society legislative initiative that had the unintended consequence of vastly increasing immigration into the country).

⁴⁰ SAMUEL HUNTINGTON, WHO ARE WE? THE CHALLENGES TO AMERICA'S NATIONAL IDENTITY 19 (2004); PATRICK J. BUCHANAN, STATE OF EMERGENCY: THE THIRD WORLD INVASION AND CONQUEST OF AMERICA 7 (2006).

⁴¹ HUNTINGTON, *supra* note 40, at xv–xvi, 12; *see also* David Schiefer and Jolanda van der Noll, *The Essentials of Social Cohesion: A Literature Review*, 132 SOC. INDICATORS RES. 579, 580 (2016) (discussing literature that measures decreases in social cohesion of European countries, in part, based on the impacts of "global migration movements and growing ethnocultural diversity," as well as "ethnic unrest").

⁴² Daniel Dale, *Almost Eight Years Later, Trump Confirms He Used the Phrase 'Shithole Countries'*, CNN (Dec. 10, 2025), <https://www.cnn.com/2025/12/10/politics/donald-trump-shithole-countries-phrase>.

⁴³ See Russell Contreras, *Axios Explains: The Racist History of Trump's "Poisoning the Blood"*, AXIOS (Dec. 30, 2023), <https://www.axios.com/2023/12/30/trump-poisoning-the-blood-racism>.

Americans from “the horrendous attacks by people that believe only in Jihad.”⁴⁴ Vice President J.D. Vance has claimed that the most pressing problem in Europe is mass migration, in part because the influx of non-White migrants will lead to “civilizational erasure.”⁴⁵

Undoubtedly, this sociocultural membership model remains a powerful motivator to shape immigration law in its image. The historical and modern pattern shows that these types of membership values often devolve into racist and xenophobic logics.⁴⁶ The surge of modern White Christian Nationalism has brought this logic back into the mainstream.⁴⁷ Understanding membership theory requires confronting this viewpoint as an ever-present set of values that seeks to use immigration law to shape the future of national membership.

2. Civic Values

A second competing vision of membership theory is based on political and civic membership, whereby a person’s membership is based on their commitment to shared civic values rather than their sociocultural identity. Civic membership prioritizes ideological cohesion amongst its members. Chambers of Commerce, political campaigns, and masonic lodges are more concerned with their members’ intellectual commitments than anything else. When expanded to describe national membership, this civic

⁴⁴ *Trump v. Hawaii*, 585 U.S. 667, 732 (2018) (J. Sotomayor, *dissenting*) (citations omitted).

⁴⁵ Brandon Livesay, *Trump Administration Says Europe Faces ‘Civilizational Erasure’*, BBC (Dec. 5, 2025), <https://www.bbc.com/news/articles/c04vdengk3do> (citing the National Security Strategy documents of the administration); *see also* Michael C. Bender, *VANCE SHOCKS EUROPE WITH A MESSAGE THAT HE HAS LONG PROMOTED AT HOME*, N.Y. TIMES (Feb. 14, 2025), <https://www.nytimes.com/2025/02/14/us/politics/vance-far-right-germany-munich-afd.html> (reporting on Vance’s speech to European leaders in Munich, claiming that mass migration was a pressing problem in Europe);

⁴⁶ *See* JOSÉ JORGE MENDOZA, *THE MORAL AND POLITICAL PHILOSOPHY OF IMMIGRATION: LIBERTY, SECURITY, AND EQUALITY* 61 (2016) (outlining scholarship that theorizes cultural criteria that can “easily lead to pernicious immigration policies”).

⁴⁷ *See, e.g.*, Shannon Bond, *How Tucker Carlson Took Fring Conspiracy Theories to a Mass Audience*, NPR (April 25, 2023), <https://www.npr.org/2023/04/25/1171800317/how-tucker-carlsons-extremist-narratives-shaped-fox-news-and-conservative-politi> (reporting on former Fox News host Tucker Carlson’s coverage on prime-time television of the Great Replacement conspiracy); Jay Caspian Kang, *Nick Fuentes is not Just Another Alt-Right Boogeyman*, THE NEW YORKER (Nov. 18, 2025), <https://www.newyorker.com/news/fault-lines/nick-fuentes-is-not-just-another-alt-right-boogeyman> (describing Fuentes’s rising popularity and his role perpetuating the Great Replacement Conspiracy).

model requires a shared commitment in democracy and classical liberalism.⁴⁸ Thus, “American identity and democracy are fused.”⁴⁹ This long tradition of American membership runs through congressional statements, presidential addresses, and scholarly treatments as the nation becomes more diverse.⁵⁰ Politicians such as Barak Obama and scholars like Hiroshi Motomura represent this camp, arguing that “being an American is not a matter of blood or birth. . . . It’s a matter of fidelity to the shared values that we all hold so dear.”⁵¹ These are among the qualities that make somebody an American, regardless of ethnic or other social attributes.⁵² And while there are certainly overlaps between sociocultural identity and civic commitments, what separates these membership camps is what is prioritized among the membership.

This civic membership model also has a prominent place in our immigration history starting in the Twentieth Century. In 1903, Congress banned and deported anarchists from the country.⁵³ Fear of anarchy gave way to fear of communism driven by the Russian Bolshevik Revolution,⁵⁴ prompting the Palmer Raids from 1919–1920 when between four and ten

⁴⁸ Stanley Hoffman, *More Perfect Union: Nation and Nationalism in America*, 20 HARV. INT’L REV. 1, 1–2 (1997); see also HUNTINGTON, *supra* note 40, at 12 (also acknowledging the importance of “ideology” as part of “American identity”).

⁴⁹ Mary Dudziak and Leti Volpp, *Introduction: Legal Borderlands: Law and the Construction of American Borders*, 57 AMER. QUARTERLY 593, 602 (2005).

⁵⁰ See, e.g., See ARTHUR M. SCHLESINGER, JR., THE DISUNITING OF AMERICA: REFLECTIONS ON A MULTICULTURAL SOCIETY 37 (1992) (quoting Franklin D. Roosevelt as saying “[a] good American is one who is loyal to this country and to our creed of liberty and democracy”); Deborah J. Schildkraut, *Defining American Identity in the Twenty-First Century: How Much “There” is There?*, 69 J. POL. 597, 599–603 (2007) (outlining the theoretical scholarship and empirical studies that connect American identity to criteria beyond ethnocultural attributes such as “Liberalism” and “Civic republicanism”).

⁵¹ Barack Obama, *Remarks by the President on Comprehensive Immigration Reform*, THE WHITE HOUSE (July 1, 2010), <https://obamawhitehouse.archives.gov/realitycheck/the-press-office/remarks-president-comprehensive-immigration-reform>; see generally HIROSHI MOTOMURA, AMERICANS IN WAITING: THE LOST STORY OF IMMIGRATION AND CITIZENSHIP IN THE UNITED STATES (2006) (arguing that immigrants should be treated as transitional citizens of the country based on the economic and social ties they develop).

⁵² THE FINAL REPORT OF THE SELECT COMMISSION ON IMMIGRATION AND REFUGEE POLICY, U.S. IMMIGRATION POLICY AND THE NATIONAL INTEREST 252 (1981) (describing the importance of civic identity as America becomes a more multicultural society regardless of regional, local, religious, or ethnic similarities).

⁵³ See Alien Immigration Act of 1903, 32 Stat. 1213 (1903).

⁵⁴ See Anna Popkova, *Imagining the Russian Community: Novoye Russkoe Slovo, the First Red Scare, and the Palmer Raids, 1919–1920*, 48 JOURNALISM HIST. 41, 41, 44 (2022) (describing the history of the time period, and the genesis of the First Red Scare and the Palmer Raids).

thousand Russian immigrants were arrested and hundreds were deported.⁵⁵ During the Cold War's infancy, the INA explicitly barred admission of communists and anybody who advocated for a totalitarian regime.⁵⁶ Between the 1920s and 1950s, hundreds of noncitizens were deported on the basis of ideology because they were perceived to be communist, socialist, or even union organizers with communist sympathies.⁵⁷ While this civic camp of American membership is certainly broader than the sociocultural camp, it still necessarily excludes people because it may deem certain clashing ideologies as unassimilable to these American commitments.

3. Assimilation and Determinacy Values

Both the sociocultural membership theory and the civic membership theory lean on common tropes of assimilation and self-determinacy. Under assimilation, potential members are selected on the basis of their ability to adhere to the dominant cultural or civic model.⁵⁸ If they cannot assimilate, which often manifests in their inability to adhere to certain membership rules, they can be removed (or deported) from the membership.⁵⁹ Others go further by arguing that potential members must show the malleability to be indoctrinated into social group's norms.⁶⁰ The concept of self-determinacy means that members of a group have the right to determine who belongs in that group.⁶¹ If a group loses its power of self-determinacy, then it can start to lose the very uniqueness that justified starting the group

⁵⁵ See David D. Cole, *Reflections on Immigration One Hundred Years After the Red Scare*, 65 NYL SCH. L. REV. 171, 172 n. 3 (2020) (quantifying the impacts of the Palmer raids based on arrests and deportations).

⁵⁶ See 8 U.S.C. § 1182(a)(28)(D) (1952) (barring “[aliens] . . . who advocate the economic, international, and governmental doctrines of world communism or the establishment in the United States of a totalitarian dictatorship”) (recodified at 8 U.S.C. § 1182(a)(3)(C)(i) (2025)).

⁵⁷ See Torrie Hester, *The History of Immigration Deportations*, <https://doi.org/10.1093/acrefore/9780199329175.013.647> (June 30, 2020) (discussing the ideological grounds for deportation during this time period).

⁵⁸ Shelley Wilcox, *Culture, National Identity, and Admission to Citizenship*, 30 SOC. THEORY & PRACTICE 559, 563–69 (2004).

⁵⁹ See, e.g., *infra* notes 65–69 and accompanying text.

⁶⁰ See TOSH, *supra* note 1, at 8–9 (arguing that societies culturally assimilate immigrant groups through education, labor, and other factors).

⁶¹ See KANSTROOM, *supra* note 3, at 10 (discussing entry and exit immigration laws as foundational to “the deepest meaning of self-determination”); PETER C. MEILAENDER, *TOWARD A THEORY OF IMMIGRATION* 32–33 (2001) (discussing membership and its relation to self-determinacy).

in the first place.⁶² A chess club is unique because its members are interested in chess; if it is open to all, perhaps checkers players will take over. Is it still a chess club at that point? A homeowners association loses the entire value of its function if people who live outside of the association can join and influence decision-making. In America's democratic republic, power is given to members to determine their leaders, their values, and their membership criteria.⁶³ And as the argument goes, so too will America lose its uniqueness if the membership loses its rights of self-determinacy to govern immigration policies of who can join (and who must be kicked out of) the membership.⁶⁴

What then defines American membership in modern immigration law? The answer is mixed, yet it is built on the foundations of these membership principles. The modern law prioritizes economic membership qualities that seek to disqualify entrants if they are likely to become a public charge; public health membership qualities that seek to exclude those with infectious diseases;⁶⁵ public safety membership qualities that deny membership to criminal offenders;⁶⁶ national security and political membership qualities that disqualify war criminals and those that might support terrorist organizations from membership.⁶⁷ There are also various proxies that judge membership based on the amount of time spent in the

⁶² See JOSÉ JORGE MENDOZA, *THE MORAL AND POLITICAL PHILOSOPHY OF IMMIGRATION: LIBERTY, SECURITY, AND EQUALITY* 62 (2016) (describing this as a "communitarian-nationalist view that political communities ought to have the presumptive right to control their borders and access to citizenship" or risk disintegration); see generally Leone Huddy, *Group Identity and Political Cohesion*, in *EMERGING TRENDS IN THE SOCIAL AND BEHAVIORAL SCIENCES* 1–2 (Robert Scott and Stephen Kosslyn, eds. 2015) (discussing the political cohesion of democracy as measured by group identities, commonly held beliefs, and economic interests).

⁶³ See T. Alexander Aleinikoff, *Citizens, Aliens, Membership and the Constitution*, 7 CONST. COMMENT. 9, 9–10 (1990) (arguing that the "Constitution is understood as . . . establishing a national community" and that immigration is "conceived of as membership rules" to this community); Sarah Song, *The Boundary Problem in Democratic Theory: Why the Demos Should Be Bounded By the State*, 4 INT. THEORY 39, 39 (2012) (using the question of if "[d]emocracy is rule by the demos, but by what criteria is the demos constituted" as a way of theorizing jurisdictional boundary problems in democracy).

⁶⁴ See MARGARET CANOVAN, *THE PEOPLE* 3 (2005) (capturing this problem by stating that "[w]e cannot even take for granted that a state's external borders correspond to the boundaries of a people, and internally the situation is yet more complex"); Addie C. Rolnick, *Tribal Criminal Jurisdiction beyond Citizenship and Blood*, 39 AM. INDIAN L. REV. 337, 429–39 (2014) (describing the similar principles in American Indian law, whereby the Court has traditionally connected ideas of sovereignty to self-determination and the membership of the governed).

⁶⁵ 8 U.S.C. §§ 1182(a)(1).

⁶⁶ *Id.* §§ 1182(a)(2); 1227(a)(2).

⁶⁷ *Id.* § 1182(a)(4); 1227(a)(4)(B).

country, whether one has family members who are *members*, and criteria that promote good moral character.⁶⁸

If one peers through the black letter law, they can start to see the foundations of membership theory. Theorists from both membership camps can make arguments that these laws are really meant to be neutral proxies to encapsulate sociocultural or civic membership values respectively. Sociocultural theorists might point to criminal and terrorism rules as proxies for lack of cultural assimilation that leads many noncitizen minorities to create social strife in the community. Civic theorists might look at those same rules and argue they are evidence of noncitizens rejecting the rule of law and commitment to civic values and contributions to the community. Whatever one's particular viewpoint is, the point of this Article is not to take sides. Instead, it simply builds the theoretical foundation that others have laid to explain the contours of how membership maps on to immigration law.

All of these entry and exit membership policies coalesce around a few general ideas: we want to establish legal rules that serve as proxies for noncitizens who will economically contribute to the country, build strong family and community ties, have a low likelihood of dangerousness, and be assimilable to American culture and political engagement.⁶⁹

B. Deportation Enforcing Membership

Membership theory also recognizes hierarchies within the membered group that are core to understanding the deportation problem.⁷⁰ Daile Lynn Rung has illustrated these general tiers according to a vertical hierarchy that exist throughout the western world in **Figure 1**.⁷¹ This tracks well with specific American tiers, which places U.S. citizens at the top, legal permanent residents at the next level, legal temporary residents next, refugees further down, and undocumented people at the bottom.

⁶⁸ *Id.* § 240A(b)(1)(B), (D).

⁶⁹ I acknowledge that this is a narrow view of membership full of contradictions, but it encapsulates largely how American membership is conceptualized by immigration policy.

⁷⁰ See Ana Velitchkova, *Citizenship as a Caste Marker: How Persons Experience Cross-National Inequality*, 71 CURRENT SOC. 705, 705 (2021) (discussing these membership tiers that exist throughout the western world as “caste development sites”).

⁷¹ Daile Lynn Rung, *Processes of Sub-Citizenship: Neoliberal Statecrafting ‘Citizens,’ ‘Non-Citizens,’ and Detainable ‘Others,’* 9 SOC. SCI. 5, 9 (2020).

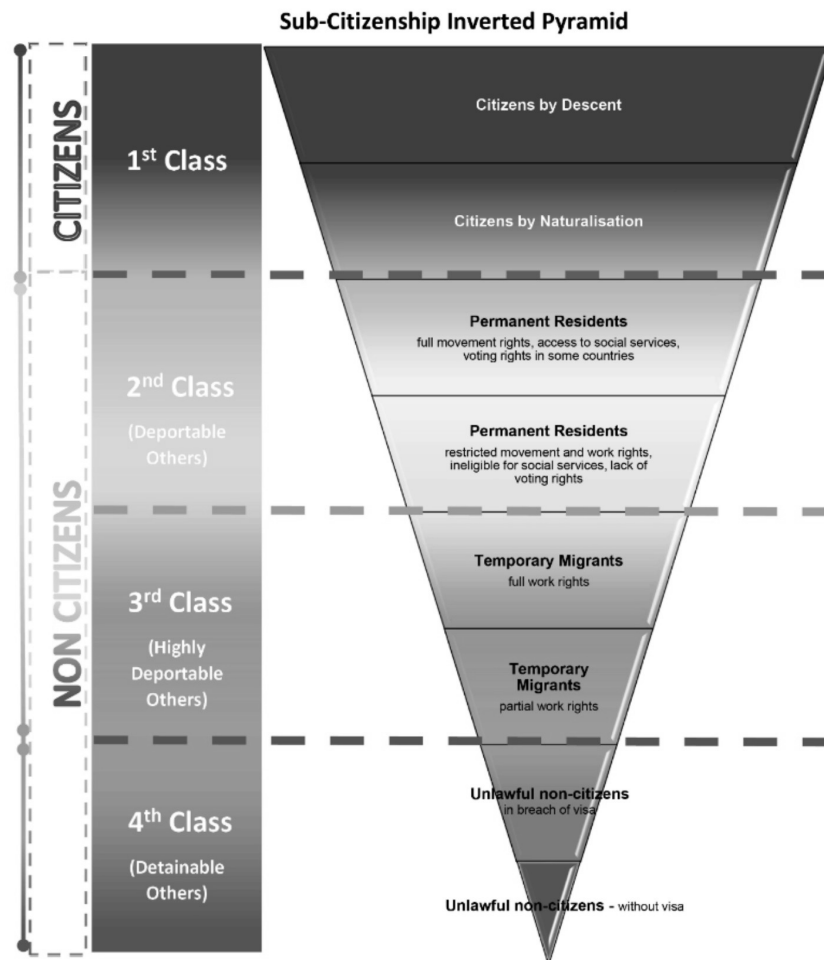


Figure 1. Representation of Sub-citizenship hierarchy of statuses.

Rung's illustration of an inverted pyramid is useful because it visually illustrates that higher legal statuses enjoy more rights in the political membership. Stephen Legomsky captured this principle by describing a continuum model that treats membership as a matter of degree. If we likened this model to a light switch, this continuum would be a dimmer knob that can calibrate according to differences between members on the hierarchical totem pole.⁷²

A few examples help illustrate the continuum model in practice:

⁷² Stephen H. Legomsky, *Immigration, Federalism, and the Welfare State*, 42 UCLA L. REV. 1453, 1463 (1995) (describing this model as weighing and balancing various factors to determine access to membership benefits along a continuum).

- Citizens enjoy the highest tier of membership and enjoy the most civil rights as a result. They can vote in federal elections or run for political office; they can access federal public benefits; and they can hold federal civil service employment as just a few examples.⁷³
-
- Legal permanent residents enjoy rights of permanent residence that are not conditional on family relationships or work status.⁷⁴
 - Legal temporary residents enjoy rights of temporary residence as long as they fulfill conditional requirements of their visa. For example, a non-citizen who has a work visa can stay in the country as long as they are employed by the approved employer; if they lose their job, however, they can be deported.⁷⁵ There are over a dozen visa categories, most with different conditional statuses that must be followed to enjoy temporary residence.⁷⁶
 - Refugees have temporary legal status to stay in the country based on humanitarian and safety concerns that make it unsafe for them to return to their home country.⁷⁷ However, this legal status is subject to the discretion of the government.
 - Undocumented noncitizens are not authorized to be in the country at all. Therefore, they can be deported without need for any cause.

⁷³ See, e.g., Ming H. Chen and Hunter Knapp, *The Political (Mis)Representation of Immigrants in Voting*, 92 U. COLO. L. REV. 715, 721 (2021) (explaining the history and current status that noncitizens cannot vote in federal elections, or hold certain public employment jobs); Julia Gelatt and Muzaffar Chishti, *COVID-19's Effects on U.S. Immigration and Immigrant Communities, Two Years On*, MIGRATION POL'Y INST. 18 (2022) (explaining that federal benefits such as Temporary Assistance for Needy Families, food stamps, and Medicare are available to U.S. citizens and legal residents with at least five years of residency).

⁷⁴ But See *infra* note 236 and accompanying text.

⁷⁵ See Gelatt and Chishti, *supra* note 73, at 18 n.69 (noting that employment-based temporary visas holders only have 60 days to find a new job after losing employment before being subject to deportation).

⁷⁶ See DIRECTORY OF VISA CATEGORIES, U.S. DEP'T OF STATE (last visited March 14, 2025), <https://travel.state.gov/content/travel/en/us-visas/visa-information-resources/all-visa-categories.html> (summarizing nearly 40 different temporary visas and their attached conditions to qualify and maintain them).

⁷⁷ See generally Daniel J. Steinbock, *Interpreting the Refugee Definition*, 45 UCLA L. REV. 733 (1998) (explaining the interaction between domestic and international refugee law).

The second model Legomsky explained is a dichotomous model that asks which members should enjoy full membership rights.⁷⁸ This is essentially a policy light switch that only has two options: full membership, and not-full membership.⁷⁹ Under the dichotomous model, deportation is the most relevant example. As represented by the **bold** line above, citizens enjoy a right that no others in the membership hierarchy enjoy. They enjoy the right to be present in the country under any circumstance.⁸⁰ Because citizens are full members of the national community, they cannot be deported. While there are some continuum benefits that make it more difficult to deport higher membership statuses,⁸¹ the deportation system primarily filters among citizens versus noncitizens.

The problem with the dichotomous model of deportation is that legal status alone is a poor proxy for membership. Among the dozens of visa categories,⁸² an immigrant might be prioritized for a visa because they married a U.S. citizen,⁸³ or because they are a foreign investor who promises to invest over \$1 million to create jobs for American workers,⁸⁴ or because they are a world-class athlete that plays a professional sport for a U.S. sports league.⁸⁵ Even though these visas carry differing levels of vetting by immigration officials, it is hard to argue that noncitizens with permanent or temporary visas who have been in the country for a few days should have more of a right to stay in the country than an undocumented person who has contributed to the country for twenty years. Those who are privileged enough to have avenues to legal immigration statuses should not be prioritized above less privileged undocumented people if sociocultural or civic membership is truly the goal.

⁷⁸ See *id.* at 1463 (basing this model on social contract theory, asking who should be a member of the contract).

⁷⁹ See Stumpf, *supra* note 13, at 1690–91 (describing deportation as an “On-Off Switch”).

⁸⁰ See Bridget Anderson, Matthew J. Gibney, and Emanuela Paoletti, *Citizenship, Deportation and the Boundaries of Belonging*, 15 CITIZENSHIP STUD. 547, 548 (2011) (stating that across the western world, citizens enjoy protection from being deported by their own government as one of the “few remaining privileges which separates citizens from settled non-citizens”).

⁸¹ See *infra* notes 116–120 and accompanying text.

⁸² See *supra* note 76 and accompanying text.

⁸³ See 8 U.S.C. §§ 1151(b); 1186(a), (h) (describing legal status for noncitizens who marry U.S. citizens).

⁸⁴ *Id.* § 1153(b)(5)(A), (C).

⁸⁵ *Id.* § 1153(b)(1)(A).

As we think about membership theory and its relevance to immigration law, this section asks us first to think about membership on a community scale. How much of immigration inclusion is based on similar principles of welcoming a new neighbor to a block party that builds community values and camaraderie? How much of immigration exclusion is based on similar principles of NIMBYism? Membership theory is simply an encapsulation of the latent values that we prioritize when forming families, businesses, and communities. We want to live with, work with, and build with people that we get along with on multiple levels. We vote with our feet to move to communities that share our values, whether they be political, economic, or religious. For better or for worse, we exclude, we include, and we assimilate. We assign rights and privileges according to a person's social standing and stake they have in the community. Therefore, when thinking about American society in broad terms, membership theory captures competing values upon which to build the next generation of this country's identity.

C. *Crimmigration Membership*

Among the many blunt proxies for national membership, crime has reigned supreme over the last quarter century.⁸⁶ Crime has consistently served as a trigger for deportation since the founding of this country, and every generation since has justified deporting noncitizens by reasoning that crime constitutes a rejection of membership values.⁸⁷ This Section outlines the modern era of crimmigration and argues that it may serve as both part of the problem and part of the solution of the deportation deficiencies explored in Part II.

The criminal and immigration systems share a common ancestor of membership;⁸⁸ therefore, the similarities between these systems are unsurprising. Criminal law demarcates the types of anti-social behavior that the community deems as a rebellion against its membership values.⁸⁹

⁸⁶ See Stephen Lee, *De Facto Immigration Courts*, 101 CALIF. L. REV. 553, 560–62 (2013) (describing criminal records as a “model for member selection” as part of the government’s sorting decisions).

⁸⁷ See Stumpf, *supra* note 13, at 1706–1728 (providing in-depth history of immigration sanctions from colonial times to the modern crimmigration present).

⁸⁸ See R. Antony Duff, *Inclusion, Exclusion and the Criminal Law*, 1 POL. FUTURES ED. 699, 704–05 (2003) (explaining that criminal law includes and excludes people from political and social membership through its enforcement mechanisms).

⁸⁹ See R. Antony Duff, *Whose Law is it Anyway? Inclusion, Exclusion and the Criminal Law*, 30 SCOTTISH AFFAIRS 2, 10–11 (explaining that liberal political communities determine their own criminal laws, and hold members accountable according to those laws that show an inability to follow the rules); EMILE DURKHEIM THE

This justifies removing the convicted person from the community through incarceration or subjecting that person to differing levels of surveillance to signal that their membership status is in question. Committing a crime violates a type of social contract because it not only harms individual victims, but it also harms the community where the crime takes place by making others feel unsafe.⁹⁰

Policy-makers have recognized these membership overlaps in an effort to connect immigration and criminal law for over a century. Despite there being over 100 years of data that a rise in immigration does not contribute to a rise in crime,⁹¹ the tough-on-crime mentality seeped into immigration law as part of the grand tradition of sorting membership.⁹² Starting in the 1980s, Congress sought to merge the two fields to make it easier to identify and deport noncitizens who committed crimes. Congress passed the Immigration Reform and Control Act of 1986 (IRCA) that allowed for expedited removal of noncitizens with criminal records; the Anti-Drug Abuse Act of 1986, which required federal immigration officials to coordinate with local law enforcement to investigate drug cases involving noncitizens; the Anti-Drug Abuse Act of 1988 that created the “aggravated felony” ground for deportation;⁹³ the Immigration Act of 1990 that eliminated avenues of relief from deportation for noncitizen criminal offenders;⁹⁴ and the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 that added nearly two dozen deportable crimes and aggravated felonies to the statutes.⁹⁵ These laws have led to our mass deportation system that currently detains over 64,000 noncitizens⁹⁶ and

DIVISION OF LABOR IN SOCIETY 62–63 (1893) (W.D. Halls Trans., 1984) (theorizing the social cohesion that crime upsets the social order).

⁹⁰ See COUNCIL OF ECON. ADVISERS, ECONOMIC PERSPECTIVES ON INCARCERATION AND THE JUSTICE SYSTEM 34 (2016), <https://perma.cc/T79J-G4VC> (recording harms to physical health, property values, and economic investment as related to the crime rate).

⁹¹ See Evans, *supra* note 39, at 15–16 (cataloguing and summarizing dozens of studies showing that increasing immigrant populations has no causal or correlative relationship to crime).

⁹² See *id.* at 27 (discussing the 1965 Act as part of the Great Society legislative initiative that had the unintended consequence of vastly increasing immigration into the country).

⁹³ See TOSH, *supra* note 1, at 25 (explaining these 1986 and 1988 laws’ impacts on crimmigration).

⁹⁴ See *infra* notes 165–169 and accompanying text.

⁹⁵ See Alina Das, *The Immigration Penalties of Criminal Convictions: Resurrecting Categorical Analysis in Immigration Law*, 86 NYU L. REV. 1669, 1672 (2011) (citing the “nearly two dozen” new deportable offenses).

⁹⁶ See Wendy Sawyer and Peter Wagner, *Mass Incarceration: The Whole Pie 2024*, PRISON POL’Y INITIATIVE (March 14, 2024), <https://www.prisonpolicy.org/reports/pie2024.html#smallerslices> (recording that 6,000

consistently reports nearly 300,000 people every year.⁹⁷ Whereas pre-1986, crime-based deportation accounted for 7% of the deportation system, it has grown to upwards of 90% in recent years.⁹⁸

Immigration enforcement is also built on the same theoretical foundations of criminal law, such as deterrence. IRCA was designed to deter migrants from coming to the country by cutting off their access to the labor market.⁹⁹ The militarization of the border during the 1980s and 1990s was meant to deter drug traffickers and migrants from entering the country, and included many joint operations between the military and law enforcement.¹⁰⁰ Family separation at the border during Trump's first term in office was specifically designed to deter families from crossing the border.¹⁰¹ This deterrent theory of punishment forms the backbone of criminal and immigration logics.

The theoretical justifications of criminal incapacitation is also present in the immigration system. Politicians have made many public appeals to deport noncitizens by arguing that the many crimes they commit could be avoided if they were removed from the country. The tragic murders of Kate Steinle and Laken Riley by noncitizens with long criminal histories served as rallying cries for this movement.¹⁰² The constant bi-partisan

noncitizens are detained for federal immigration crimes, 12,400 are held in pretrial detention by the U.S. Marshals, 38,000 are detained awaiting deportation for other immigration violations, and 8,000 unaccompanied minors are being held by federal authorities).

⁹⁷ See TOSH, *supra* note 1, at 3 (discussing annual deportations and the United States's status as the world leader in deportation rates).

⁹⁸ Compare Stephen H. Legomsky, *The New Path of Immigration Law: Asymmetric Incorporation of Criminal Justice Norms*, 64 WASH. & LEE L. REV. 469, 488 n.92 (2007) ("From 1908 through 1986 there were large fluctuations, but, for that era as a whole, approximately 7% of all deportations were on crime-related post-entry grounds."), with ICE Details COVID-19 Impacts on Immigration Enforcement in FY 2020, Immigration & Customs Enforcement (2020) (last visited Feb. 5, 2025), <https://www.ice.gov/features/ERO-2020> (stating that the "vast majority" of deportations, "92%—had criminal convictions or pending criminal charges").

⁹⁹ See Muzaffar Chishti and Charles Kamasaki, *IRCA in Retrospect*, MIGRATION POL'Y INST. (Jan. 2014), <https://issuelab.org/resources/17193/17193.pdf> (describing the design of IRCA to deter new unauthorized entries into the country).

¹⁰⁰ See Dean Wilson, *Border Militarization, Technology and Crime Control*, in THE ROUTLEDGE HANDBOOK ON CRIME AND INTERNATIONAL MIGRATION (S. Pickering and J. Ham, eds., 2014) (discussing the military deterrence strategy at the border).

¹⁰¹ See Guus Duindam, *Family Separation as Deterrent: Affected Refugee Rights in International Law and Remedies*, 61 VA. J. INT'L L. ONLINE 75, 80 (2020) (describing the deterrent logic behind family separation policy).

¹⁰² See Melissa Mahtani, *'Improper' for Officials to Slam Justice System After Kate Steinle Verdict*, Mark O'Mara Says, CNN (Dec. 2, 2017),

messaging of the dangerousness of criminal noncitizens through multiple presidential administrations show a commitment to fusing the fear of crime with the fear of the foreigner.¹⁰³ And these politics of fear help justify the rampant enforcement efforts to find and deport as many of these non-members as possible.

Critical schools of legal scholarship further contribute to this crimmigration membership framing by adding the confluence of racial hierarchies to the analysis. Where immigration and crime converge, there is an outsized targeting of Latino and Black communities.¹⁰⁴ Kevin Johnson has highlighted the stark racial demographics of deportation, where 96% of noncitizens deported from the country in 2013 were Mexican and Central American; during this same time, these nationalities were only 50% of the undocumented community and 14% of the noncitizen community.¹⁰⁵ Black noncitizens are also subject to disproportionate deportations; although they only make up 7% of the noncitizen community, they make up 20% of those deported for criminal violations.¹⁰⁶ Understandably, a criminal system that uses tools of racial profiling that leads to higher numbers of arrests and convictions for Black and Latino men will necessarily contribute to an immigration system that disproportionately deports Black and Latino noncitizens for these crimes.¹⁰⁷

<https://www.cnn.com/2017/12/02/us/omara-steinle-verdict-politicians-cnntv> (explaining political ramifications of Steinle murder case); Ana Faguy, *Laken Riley's Father Says He's Angry Politicians Are Using Tragedy for Votes*, FORBES (March 18, 2024), <https://www.forbes.com/sites/anafaguy/2024/03/18/laken-rileys-father-says-hes-angry-politicians-are-using-tragedy-for-votes/> (same regarding the murder of Laken Riley).

¹⁰³ See Evans, *supra* note 39, at 6–11 (explaining the long history of bipartisanship regarding tough-on-immigration's overlaps with tough-on-crime rhetoric and policies).

¹⁰⁴ See Angélica Cházaro, *The End of Deportation*, 69 UCLA L. REV. 1040, 1088–91 (2021) (discussing the racialization of the deportation system that uses criminal grounds to enforce immigration law on Black and Latino communities).

¹⁰⁵ Kevin R. Johnson, *Racial Profiling in the War on Drugs Meets the Immigration Removal Process: The Case of Moncrieffe v. Holder*, 48 U. MICH. J. L. REFORM 967, 997 (2015) (collating data about demographical disproportionalities in deportations).

¹⁰⁶ TOSH, *supra* note 1, at 10–11.

¹⁰⁷ See *id.* at 89 (discussing the disproportionate rates that Black and Latino men are pulled over by police, arrested for drug violations, and other crimes). See also Devon W. Carbado and Cheryl I. Harris, *Undocumented Criminal Procedure*, 58 UCLA L. REV. 1543, 1545–47 (2011) (discussing the racialized practices of law enforcement and how they intersect with racially profiling Latinos); Lalia L. Hlass, *Lawyering from a Deportation Abolition Ethic*, 110 CAL. L. REV. 1597, 1610 (2022) (arguing that “immigration enforcement is a racial subordination project”); Matthew Boaz, *The Migration of Abolition Theory*, 103 N.C. L. REV. 385, 413–19 (2025) (describing how abolition theory has migrated into immigration practice as a way to challenge immigration detention, deportation, and exclusion).

The theoretical and practical similarities of immigration and criminal law membership bind these areas together. Criminal law makes similar decisions to excise members from the community based on anti-social behavior that carries many overlaps with sociocultural and civic membership models. The racialized policies of criminal law overlap with sociocultural membership, interpreting violations as an indication that certain groups cannot assimilate to dominant social and cultural values. Criminal law also shares civic membership logic, regarding crimes as rebellions against the rule of the law. Consequently, crime plays a large role in the modern membership practices of immigration law, which suggests it has a role to play in the problems and solutions explored below.

II. MEMBERSHIP DEFICIENCIES

Nascimento B. immigrated from Jamaica when he was 23-years-old. He began selling marijuana, which lead to confrontation when he abducted an acquaintance for stealing marijuana from his apartment. First, he was convicted of kidnapping, and sentenced to fifteen years in prison. Second, he was ordered to be deported from the country after serving his sentence. Nascimento was a model inmate while in prison, earning his bachelor's degree, getting married, and having a son all while serving his time. Upon being released from prison, ICE chose not to deport him because he was not considered a priority for deportation. For five years, Nascimento lived Yonkers and worked in Harlem until ICE finally decided to act on his deportation order when a new presidential administration took over. He was deported to Jamaica only a few weeks later.¹⁰⁸

In light of the foundation of membership, the mass deportation system has developed a complex legal framework that yields tremendous deficiencies and errors when determining non-members to be removed from the country. As a brief primer to further this argument, the deportation system can be broken down into a few important procedural steps. First, an IJ must make a legal determination on whether a noncitizen is deportable.¹⁰⁹ Second, if a noncitizen is deportable, the IJ must also

¹⁰⁸ See Luis Ferre-Sadurni, *21 Years Later, Deported Back to a 'Home' He Barely Knew*, N.Y. TIMES (April 24, 2025), <https://www.nytimes.com/2025/04/24/nyregion/deportation-trump-jamaica.html>.

¹⁰⁹ See Stephen H. Legomsky, *Restructuring Immigration Adjudication*, 59 DUKE L.J. 1635, 1642 (2010) (explaining the processes of deportation decision-making).

consider any affirmative applications for relief from deportation.¹¹⁰ Third, the IJ renders a decision followed by a formal deportation order or termination the proceedings.¹¹¹ Finally, the noncitizen may be detained and ultimately taken by force onto a flight back to their country of origin.

This Part focuses on the system's membership deficiencies when accounting for errors with disproportionality, discretion, and nonuniformity. First, it starts with the principle of proportionality given the sheer breadth of violations that can trigger deportability. Given the tremendous individual and social costs of separating somebody from their home, the deportation system fails to balancing the severity of the violation with the severity of the sanction. Second, it discusses the principle of discretion. Bias and a lack of accountability have allowed IJs to wield an extraordinary amount of discretion that leads to unjustifiable disparities in deportation outcomes. Third, it continues by exploring the principle of uniformity in the system that allows different laws to apply to different noncitizens in deportation proceedings. When the difference between deportation and relief is based on the differences in the vagaries of state law, the system is erroneously prioritizing state over national membership.

A. Disproportionality

The deportation system lacks any semblance of proportionality that is embedded in nearly every other area of the law.¹¹² Put simply, proportionality requires that the severity of a sanction be balanced with the severity of a violation;¹¹³ yet deportation is a sanction that applies to every immigration violation regardless of its severity. To play with extremes, there is an inherent feeling that murder requires more than a nominal fine, and the death penalty is far too harsh for shoplifting.¹¹⁴ And yet, in immigration law, we are imposing the harshest sanction justified by law—deportation—to both murder and shoplifting alike. Consequently, when the system treats nearly all noncitizens alike and attaches the same threat

¹¹⁰ See *id.*

¹¹¹ See *id.*

¹¹² Stumpf, *supra* note 13, at 1684 (stating that immigration “stands alone in the legal landscape” regarding proportionality).

¹¹³ See Michael J. Wishnie, *Immigration Law and the Proportionality Requirement*, 2 UC IRVINE L. REV. 415, 416 (2012) (defining proportionality as requiring that “a sanction should not be excessive in relation to the gravity of an offense”).

¹¹⁴ See Andrew von Hirsch, *Proportionality in the Philosophy of Punishment*, 16 CRIME & JUST. 55, 56 (1992) (“People have a sense that punishments scaled to the gravity of offenses are fairer than punishments that are not.”).

of banishment to every immigration violation, deportation's very purpose must be questioned.¹¹⁵

The modern deportation system has wholly abandoned any attempts to follow the principle of proportionality. Noncitizens who carry a communicable disease¹¹⁶ or live far below the poverty line can be deported.¹¹⁷ Failing to notify the government when changing addresses,¹¹⁸ overstaying a visa,¹¹⁹ or using fraudulent documents can trigger deportation.¹²⁰ And a range of crimes such as petty theft,¹²¹ spitting on a police officer,¹²² and jumping a turnstile¹²³ are also deportable offenses, some of which bar re-entry into the United States for life.¹²⁴

This was not always the case in immigration law, and need not be in the future. During the nineteenth century, states and the federal government often forewent deporting noncitizens in favor of issuing bonds, fines, and other means of accountability for being in the country without permission.¹²⁵ Throughout the twentieth century, there were limited grounds for deportation that were seldom used by the federal government, even for noncitizens with criminal records.¹²⁶ But things changed in the 1980s and 1990s when Congress added dozens of deportable offense to

¹¹⁵ See Daniel Kanstroom, *Deportation, Social Control, and Punishment: Some Thoughts About Why Hard Laws Make Bad Cases*, 113 HARV. L. REV. 1889, 1891 (2000) (noting the “automatic and often disproportionate nature of the deportation sanction”); see also Legomsky, *supra* note 98, at 473 (“[The present state of affairs virtually invites policymakers to abandon any sense of proportion.”).

¹¹⁶ 8 U.S.C. § 1182(a)(1).

¹¹⁷ *Id.* § 1227(a)(5).

¹¹⁸ *Id.* § 1227(a)(3)(A).

¹¹⁹ *Id.* § 1227(a)(1)(C).

¹²⁰ *Id.* § 1227(a)(3)(B)–(C).

¹²¹ See *United States v. Pacheco*, 225 F.3d 148, 150–51, 153 (2d Cir. 2000).

¹²² *U.S. v. Carthone*, 726 F.3d 503, 516–17 (4th Cir. 2013).

¹²³ See Bryan Loney, *Forced to Go Home Again*, N.Y. TIMES (Feb. 27, 2005), <https://www.nytimes.com/2005/02/27/opinion/opinionspecial/forced-to-go-home-again.html> (stating that “crimes including petty offenses like turnstile jumping, shoplifting or possession of a small quantity of marijuana may be subject to deportation”).

¹²⁴ See Jordan Cummings, *Nonserious Marijuana Offenses and Noncitizens: Uncounseled Pleas and Disproportionate Consequences*, 62 UCLA L. REV. 510 (2015) (discussing the growing number of offenses that trigger deportation and bar legal re-entry into the country for significant periods of time).

¹²⁵ See Stumpf, *supra* note 13, at 1708–10 (recounting the historical record of graduated immigration sanctions).

¹²⁶ See Cházaro, *supra* note 104, at 1086 (noting that “for much of U.S. immigration history, . . . noncitizens were arrested [for criminal violations] and not deported,” and further discussing the drastic jump in criminal deportations in the 2000s).

the INA.¹²⁷ While crimes like murder, engaging in terrorism, and committing war crimes have long been justified as deportable offenses,¹²⁸ placing offenses like failing to register a change of address on par with some of the most evil acts perpetuated in human history is a major design flaw.

Given the sheer range of immigration violations subject to deportation, it is difficult by any measure to argue that deportation is a sanction that is balanced with the severity of most of these minor violations.¹²⁹ For the deportee, they are sent back to a country they may not have set foot in for decades.¹³⁰ These noncitizens are forcibly separated from “all that makes life worth living,”¹³¹ including their families, businesses, employment, and social networks here in the United States. Deportation decisions rarely consider whether the deportee has family, a social network, job prospects, or even a place to sleep when they are sent back to these countries.¹³² Deportation also reverberates throughout the deportee’s family and community. Households lose their breadwinners, children lose their parents, employers lose their workers, and governments lose their taxpayers.¹³³ As one scholar recognized, “we may never know the full effects of our recent deportation delirium . . . because the government has failed to keep comprehensive, accurate data on deportations from the United States.”¹³⁴

¹²⁷ See TOSH, *supra* note 1, at 22–24 (describing the history of expanding the list of deportable offenses throughout the 20th Century); Das, *supra* note 95, at 1672 (describing the “two dozen new categories and subcategories of offenses that trigger immigration consequences” under the Illegal Immigration Reform and Immigration Responsibility Act of 1996).

¹²⁸ See, e.g., 8 U.S.C. §§ 1227(a)(4)(B), (D).

¹²⁹ See *Fong Yue Ting v. U.S.*, 149 U.S. 698, 759 (1893) (Field, J. dissenting) (discussing the “cruelty” of the deportation system that forcibly breaks up “all of the relationships of friendship, family, and business” that a noncitizen has established in the country).

¹³⁰ See *Carlson v. Landon*, 342 U.S. 524, 537–38 (1952) (discussing deportation as “a particularly drastic remedy where [noncitizens] have become absorbed into our community life”).

¹³¹ *Ng Fung Ho v. White*, 259 U.S. 276, 284 (1922).

¹³² *But See In re Cervantes-Gonzales*, 22 I&N Dec. 560, 567 (BIA 1998) (considering factors such as the noncitizen’s family ties and employment prospects in their country of origin to determine if deportation would impose an “extreme hardship”).

¹³³ See Beth F. Baker, *The Economics of State Violence: Explaining Mass Deportation*, 9 ECON. ANTHROPOLOGY 125, 127, 129–32 (2022) (studying how families of deportees suffer from “extreme emotional, social, and financial burdens” based on “chaos and social dislocation, generating economic costs borne largely by working-class, mixed-status families”).

¹³⁴ KANSTROOM, *supra* note 3, at 139–40.

Immigration enforcement officials have tried to justify these tremendous cost of the deportation system by likening it to criminal incarceration. As the argument goes, this nation separates people from their families, employment, and social networks all the time when a citizen is incarcerated for committing a crime.¹³⁵ Therefore, there is precedent for such harsh treatment when noncitizens violate our immigration laws. Perhaps unwittingly, this argument strengthens the call for proportionality in deportation decisions. Even the basic principles of criminal punishment require some commitment to proportionality. The very reason that proportionality is necessarily linked to criminal punishment is because the potential deprivation of an offender's liberty is so high that the potential of gross over punishment must be mitigated. The offender's criminal wrongdoing must be balanced with the severity of their punishment, which spans a broad system of options including probation, restorative justice, diversionary programs, community service, incarceration, early release, parole, commutations, and clemency. The perverse fact that criminal incarceration is the closest thing immigration officials can use to justify deportation is the very reason why the latter's lack of proportionality is so troubling.¹³⁶

Given the severity of deportation as a sanction, it is curious that we see strong commitments to proportionality in other areas of law in which the stakes are not nearly as high. In constitutional law, Vicki Jackson has argued that proportionality is a guiding principle because whenever "government intrusions of freedoms [must] be justified . . . greater intrusions [must] have stronger justifications."¹³⁷ The Court has also used

¹³⁵ See, e.g., Shaila Dewan, *Family Separation: It's a Problem for U.S. Citizens, Too*, N.Y. TIMES (June 22, 2018), <https://www.nytimes.com/2018/06/22/us/family-separation-americans-prison-jail.html> (quoting former Secretary of DHS, Kirstjen Nielsen, justifying family separation policies in immigration with incarceration); see also *VIRAL MOMENT: Tom Homan—Trump's Border Choice—Clashes with AOC Over Family Separations* (Nov. 11, 2024), <https://www.youtube.com/watch?v=vW86at7EgD4> (documenting Homans' responses during a 2019 House Oversight Committee hearing where he compared zero-tolerance border policies and family separation to being arrested for DUI with a child in the backseat, stating that those parents would also be separated from their children); Alexis Karteron, *Family Separation Conditions*, 122 COLUM. L. REV. 649, 650 (2022) (arguing that family separation in criminal law is as troubling as immigration law).

¹³⁶ See Jennifer M. Chacon, *Unsecured Borders: Immigration Restrictions, Crime Control and National Security*, 28 IMMIGR. & NAT'LITY L. REV. 613, 676 (2007) (making similar comparisons between crime and immigration proportionality, arguing that "[t]o a greater degree than criminal detention, removal may be more punitive in some cases than in others").

¹³⁷ Vicki C. Jackson, *Constitutional Law in an Age of Proportionality*, 124 YALE L.J. 3094, 3094, 3104–10 (2015); see also Jud Mathews, *Proportionality Review In*

principles of proportionality to curtail excessive punitive damages, stating that gross excessiveness raises “important substantive due process concerns.”¹³⁸ Under the Takings Clause, the Court has also demanded proportionality as a way of limiting government overreach when condemning private property.¹³⁹ Proportionality is also an important principle across international law, which frequently asks whether the legality of an action is balanced between the objective, the methods, and the consequences of the action.¹⁴⁰ Although proportionality comes in many different shapes and sizes across the law, there is near universal agreement among lawyers, scholars, and judges that accountability for an action should have some semblance of equality or fit with the legal consequences for that action.¹⁴¹ But not in the deportation system.

This level of disproportionality illustrates the failure to respect national membership. Immigration has little commitment to proportionality but instead prioritizes dichotomous treatment according to citizenship status. There are at least two flaws of this disproportionate dichotomous system. First, it assumes that all noncitizens are created equally regardless of their membership tier and should be treated equally with the sanction of deportation. But this is not the case as a legal matter. For example, legal permanent residents have typically gone through longer periods of vetting and often paid substantial sums to solidify their legal status in ways that legal temporary residents and undocumented people

Administrative Law, in COMPARATIVE ADMINISTRATIVE LAW 405, 405 (Susan Rose-Ackerman, Peter L. Lindseth, and Blake Emerson eds., 2d ed. 2017) (“[W]hen the government acts, the means it chooses should be well adapted to achieve the ends it is pursuing.”).

¹³⁸ *BMW of N. Am., Inc. v. Gore*, 517 U.S. 559, 568 (1996); *State Farm Mutual Auto. Ins. Co. v. Campbell*, 538 U.S. 408, 426 (2003) (“[C]ourts must ensure that the measure of punishment is both reasonable and proportionate to the amount of harm to the plaintiff and to the general damages recovered.”); *see also* Banks, *supra* note 13, at 1651 (discussing proportionality in punitive damage cases).

¹³⁹ *See, e.g., Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595, 599 (2013) (requiring a “nexus” and “rough proportionality” between the government’s demand and the effects of the proposed land use).

¹⁴⁰ *See* Judith Gail Gardam, *Proportionality and Force in International Law*, 87 AM. J. INT’L L. 391, 391, 407 (1993); Richard S. Frase, *Excessive Prison Sentences, Punishment Goals, and the Eighth Amendment: “Proportionality” Relative to What?*, 89 MINN. L. REV. 571, 598-627 (2005) (discussing examples of proportionality principles in foreign and international law).

¹⁴¹ *See* Jason A. Cade, *Sanctuaries as Equitable Delegation in an Era of Mass Immigration Enforcement*, 113 NW. U. L. REV. 433, 451 (2018) (explaining the general agreement on proportionality among legal actors); *See* E. THOMAS SULLIVAN & RICHARD S. FRASE, *PROPORTIONALITY PRINCIPLES IN AMERICAN LAW: CONTROLLING EXCESSIVE GOVERNMENT ACTIONS* 6 (2008) (identifying “the many forms that proportionality standards have taken” root across American law).

have not. If deportation were truly about enforcing membership, we might expect a more calibrated approach that reserved deportation for noncitizens who had less claim to national membership because they fall lower on the membership totem pole. But even within the same membership tier, not all noncitizens are created equal. As an example, there are many undocumented noncitizens who have lived in the country for several years and have paid taxes, invested in their community, and have exhibited no indications of dangerousness. These undocumented noncitizens have more stake in American membership than other undocumented immigrants who may have only entered the country a few days ago.

The second problem with the dichotomous disproportionate deportation system is that it treats all immigration violations alike, regardless of their signaling towards membership qualities. Different violations communicate different commitments to national membership, and deportation should reflect the nuances of these realities.¹⁴² Terrorism is different in kind than entering the country without inspection. Somebody who engages in terrorism, regardless of their citizenship or legal status, has displayed contempt for the American membership group by attacking the foundations of American culture and political systems. This is much different in degree and in kind than entering the country without inspection, although that too is a rejection of the membership's rights to self-determinacy. To deport both people muddles the membership qualities that we are truly trying to enforce.

This Section's treatment of disproportionality strengthens the ultimate argument towards reform. The lack of proportionality in the deportation system is simply inappropriate given the severity of the sanction. And if criminal punishment is the closest thing we can use to compare the personal and social costs of deporting noncitizens, perhaps we should lean into this similarity to find workable solutions.

B. Discretion

Whereas proportionality demands that materially different noncitizens are treated differently, the problems of discretion are somewhat the opposite whereby similarly situated noncitizens are treated differently. Immigration law is draped in the "fabric of discretion,"¹⁴³ which describes when IJs have the legal authority to make a choice between alternative

¹⁴² See Chacon, *supra* note 22, at 134 n.5 (2016) (criticizing the crime proxy of membership because of the biases that exist in the criminal justice system).

¹⁴³ *Id.* at 165 (referring to the "whole enterprise . . . as a fabric of discretion").

courses of action.¹⁴⁴ This does not necessarily mean that there is a *correct* legal answer, but instead that there is a range of acceptable legal options that the IJ can make.¹⁴⁵ This section argues that such discretion creates an arbitrariness to deportation decisions when different IJs produce wide disparities that treat similarly situated noncitizens differently based on personal whim.

As a procedural matter, discretion can seep into many aspects of how IJs run their individual courtrooms. There are no enforceable rules of evidence, meaning that IJs use their discretion to decide what evidence they will allow and how much weight they will give to it.¹⁴⁶ IJs are also given tremendous discretion when determining the credibility of written and live testimony, which often impacts deportation outcomes.¹⁴⁷ When a noncitizen raises an avenue of relief or an exemption to deportability, the law requires IJs to consider various factors to decide whether the noncitizen merits a favorable exercise of discretion to enjoy such relief.¹⁴⁸ When it comes time to make a decision, IJs enjoy unfettered control over the process because there is no jury system. And as a final cornerstone of discretion, there is no judicial review of an IJs discretionary decisions to grant or deny relief.¹⁴⁹ Discretion reigns free in immigration court, and often in ways that produce unjustified disparities.

Immigration is not exceptional in this regard, but yields even more troubling disparities given what is at stake.¹⁵⁰ Scholars in the judicial decision-making literature have studied disparities according to a host of arbitrary criteria, such as how race, sex, political views, religion, and other factors can impact rulings.¹⁵¹ Consider David Hausman's study of

¹⁴⁴ See Kanstroom, *supra* note 115, at 180–81; see also HENRY M. HART, JR. & ALBERT M. SACKS, *THE LEGAL PROCESS: BASIC PROBLEMS IN THE MAKING AND APPLICATION OF LAW* 162 (tentative ed. 1958) (defining discretion as the power to choose between multiple permissible courses of action).

¹⁴⁵ See Kanstroom, *supra* note 115, at 180–81.

¹⁴⁶ See Won Kidane, *Revisiting the Rules of Evidence and Procedure in Adversarial Immigration Proceedings*, 57 CATH. U. L. REV. 93, 99 (2008) (arguing that the lack of procedural and evidentiary rules in immigration court is largely responsible for “profoundly inconsistent, unpredictable, and incoherent adjudication”).

¹⁴⁷ See *id.* 133–141 (discussing the problematic lack of rules governing credibility determinations of noncitizens).

¹⁴⁸ See KANSTROOM, *supra* note 3, at 215 (describing how discretion operates when granting “various waiver and relief provisions” in immigration law (quotations omitted)).

¹⁴⁹ 8 U.S.C. § 1252 (a)(2)(B).

¹⁵⁰ See generally Fatma E. Marouf, *Implicit Bias and Immigration Courts*, 45 NEW ENG. L. REV. 417 (2011) (describing the implicit biases in immigration courts that impact deportation outcomes).

¹⁵¹ See, e.g., L. Song Richardson, *Systemic Triage: Implicit Racial Bias in the Criminal Courtroom*, 126 YALE L.J. 862, 887 (2017) (finding that defendants’ skin tone can trigger

immigration appeals, which shows that the different rates of deportation among IJs are three times larger than those measuring federal judges' decisions on whether to incarcerate criminal offenders.¹⁵² A pathbreaking study showed that some IJs were 1820% more likely to grant asylum than their peers in the same courthouse.¹⁵³ Another study corroborated this discretionary disparity by showing that asylum denial rates range from 5% to 99% across the country, and can range from 1.3% to 91.6% in the same building.¹⁵⁴ Other scholars have found that female IJs are more lenient on average than male IJs,¹⁵⁵ and that Asian-American judges are also more favorable to noncitizens.¹⁵⁶ IJs who previously worked in adversarial positions to noncitizens were also shown to grant asylum less than others.¹⁵⁷ In short, there are a number of demographic markers, life experiences, and other quirks that are statistically significant in measuring IJs' rates of granting immigration relief.¹⁵⁸ And this is not a new

racial bias in sentencing); Pauline T. Kim, *Lower Court Discretion*, 82 NYU L. REV. 383, 394–95 (2007) (summarizing empirical research studying the impact of a judge's political ideology on case outcomes, finding that “this body of work strongly suggests that *both* politics and law matter”); Pat K. Chew and Robert E. Kelley, *The Realism in Judicial Decision Making: An Empirical Analysis of Plaintiffs' Race and Judge's Race*, 28 HARV. J. RACIAL & ETHNIC JUST. 91, 105 (2012) (finding that things such as a judge's education level, military experience, and previous employment can measurably impact a judge's decisions when compared to others).

¹⁵² David Hausman, *The Failure of Immigration Appeals*, 164 U. PENN. L. REV. 1177, 1178–79 (2016). This study also found that “the standard deviation of judge relief rates . . . was approximately nine percentage points,” meaning that “one third of noncitizens have their cases decided by judges either nine percentage points harsher or nine percentage points more generous than court average.” *Id.* at 1187.

¹⁵³ Jaya Ramji-Nogales, Andrew I. Schoenholtz, and Philip G. Schrag, *Refugee Roulette: Disparities in Asylum Adjudication*, 60 STAN. L. REV. 295, 301 (2007) (giving overview of study findings).

¹⁵⁴ *Asylum Success Still Varies Widely Among Immigration Judges*, TRAC IMMIGRATION (Nov. 25, 2024), <https://trac.syr.edu/reports/752/>.

¹⁵⁵ See Rikha Sharma Rani, *Trapped at the Border? Hope for a Female Judge*, POLITICO (June 15, 2018), <https://www.politico.com/magazine/story/2018/06/15/immigration-court-judge-women-218824/> (citing study showing that male and female judges deny asylum at rates of 66 percent and 50 percent respectively).

¹⁵⁶ Josh Hsu, *Asian American Judges: Identity, Their Narratives, & Diversity on the Bench*, 11 ASIAN PAC. AM. L.J. 92, 108 (2006).

¹⁵⁷ See Ramji-Nogales, Schoenholtz, and Schrag, *supra* note 153, at 345–46.

¹⁵⁸ See BANKS MILLER, LINDA CAMP KEITH, AND JENNIFER S. HOLMES, *IMMIGRATION JUDGES AND U.S. ASYLUM POLICY* 48–49, 100–104 (2015) (citing studies showing that IJs policy preferences, political factors, local demographics, and economics “dramatically influence their disposition of asylum cases”); Asad, *supra* note 3, at 1226 (citing studies showing that an IJ's gender, previous work experience, policy preferences, and attitudes towards national-origin groups influence asylum outcomes).

phenomenon. Scholars have been ringing the warning bells since the 1970s of such disparities in deportation outcomes.¹⁵⁹ And yet, even with decades of research on how discretion and judicial biases can impact deportation decisions, immigration courts have not taken any systemic actions to minimize these disparate impacts.¹⁶⁰

These disparities in deportation decisions illustrate that immigration is an area where the random assignment of an IJ might be just as predictive of the outcome as the merits of the case.¹⁶¹ The Court has expressed its concern that “[d]eportation decisions . . . cannot be made a sport of chance,”¹⁶² and yet it appears their fears have been manifest for quite some time. It would be naïve to think we could design a system free of disparities,¹⁶³ but at what point do we intervene because the disparities are too wide and the human costs of the relief at stake are so high?

In light of these deportation disparities linked to discretion, some scholars have interestingly argued that the solution is to grant IJs even more discretion. According to their logic, giving IJs more discretion might lead to more deportation relief for noncitizens. Mary Holper studied the purpose of discretion in immigration statutes back to the 1940s, and noted that Congress delegated discretion to the executive branch to help “alleviate hardships of harsh and uncompromising deportation laws.”¹⁶⁴ From 1917–1990, there was a an institutional discretionary safety-valve called the Judicial Recommendation Against Deportation (JRAD), which gave criminal sentencing judges the authority to determine whether a

¹⁵⁹ See, e.g., Abraham D. Sofaer, *Judicial Control of Informal Discretionary Adjudication and Enforcement*, 72 COLUM. L. REV. 1293, 1301 (1972) (noting that discretionary decisions to grant relief through adjusting status under 8 U.S.C. § 1255 leads to inconsistent results); Maurice A. Roberts, *The Exercise of Administrative Discretion Under the Immigration Laws*, 13 SAN DIEGO L. REV. 144, 144 (1975) (warning that the amount of discretion given to IJs has the potential for “hostile or xenophobic adjudicator[s]” to impose their own lifestyle and beliefs onto immigration outcomes based on the lack of guidelines on how discretion should be applied).

¹⁶⁰ See Mary Holper, *Discretionary Immigration Detention*, 74 DUKE L.J. 961, 968–69 (2025) (discussing the lack of action by immigration courts to combat implicit bias).

¹⁶¹ See Ramji-Nogales, Schoenholtz, and Schrag, *supra* note 153, at 302 (stating that immigration relief “may be determined as much or more by who th[e] official is, or where the court is located, as it is by the facts and law of the case”).

¹⁶² *Judulang v. Holder*, 565 U.S. 42, 59 (2011).

¹⁶³ See Stephen H. Legomsky, *Learning to Live with Unequal Justice: Asylum and the Limits to Consistency*, 60 STAN. L. REV. 413, 424 (2007) (considering if the disparities in asylum adjudication were unfortunate but necessary byproducts of human decision-making).

¹⁶⁴ Holper, *supra* note 160, at 968–69.

noncitizen convicted of a crime should be deported.¹⁶⁵ Another example is § 212(c) in the INA, which allowed IJs to waive deportation for qualifying noncitizens.¹⁶⁶ From 1989–1995 alone, IJs across the nation waived deportation in nearly 51% of applicable cases,¹⁶⁷ granting relief to over ten thousand noncitizens who otherwise would have been deported.¹⁶⁸ However, Congress eliminated both JRAD and § 212(c) during the tough-on-immigration era of the 1980s and 1990s.¹⁶⁹

Discretion should be assessed as a double-edged sword. It can cut for or against noncitizens facing deportation,¹⁷⁰ and the historical and policy pendulum has swung both ways. While some scholars rely on history to argue that a resurgence in discretionary relief can mitigate the harsh mass deportation system, other scholars use modern empirical tools as evidence that the more discretion IJs possess (and other judges for that matter),¹⁷¹ this would open the door wider for disparate treatment that raise fundamental questions of equal treatment and legitimacy.¹⁷² This back and forth on the merits of discretion illustrates this Section’s true takeaway: discretion itself is too wide and the disparities are too great. There are IJs who wield discretion far too leniently, and there are IJs who wield discretion far too harshly towards the same systemic failures.

The true question that this Article refocuses on is whether discretionary regimes of the past or present forward the membership goals of the deportation system. The wide disparities of deportation outcomes caused by discretion is an important example of how the system fails to accurately enforce membership. Legal decision-making relies on consistency and predictability to produce stable legal rules and systemic practices. The current level of fluctuation between IJs reflects the opposite. Undoubtedly, these disparity-producing biases are being used (unwittingly)

¹⁶⁵ See Kari E. Hong, *The Absurdity of Crime-Based Deportation*, 50 UC DAVIS L. REV. 2067, 2085 (2017) (outlining the history of JRAD from its inception in 1917 to its repeal in 1990).

¹⁶⁶ 8 U.S.C. § 1182(c) (repealed 1996).

¹⁶⁷ See Chacon, *supra* note 136, at 631.

¹⁶⁸ See Julie K. Rannik, *The Anti-Terrorism and Effective Death Penalty Act of 1996: A Death Sentence for the 212(c) Waiver*, 28 U. MIAMI INTER-AM. L. REV. 123, 150 n.80 (1996).

¹⁶⁹ See Ingrid V. Eagly, *Criminal Justice in an Era of Mass Deportation: Reforms from California*, 20 NEW CRIM. L. REV. 12, 19 (2017) (describing this ironic policy change that increased the severity and decreased the discretionary safety valves).

¹⁷⁰ See KANSTROOM, *supra* note 3, at 215 (characterizing the costs and benefits of discretion).

¹⁷¹ See, *supra* notes 164–165 and accompanying text.

¹⁷² See *supra* notes 150–160 and accompanying text.

by IJs as proxies for whether the noncitizen before them is economically productive, has sufficient family ties, is dangerous, and is culturally assimilable. The more attributes a noncitizen shares with an IJ, the more comfortable they might feel that the noncitizen might come close to the IJ's own personal membership qualities.¹⁷³ But this is flawed logic at best, and pernicious self-aggrandizement at worst. American membership must mean more than mere shared or contrasting attributes with the decision-maker. National membership should not be determined by the personal biases of individual IJs.

C. *Nonuniformity*

The problems of nonuniformity are similar in nature to those of discretion because both allow for the treatment of noncitizens to be governed primarily by criteria outside of their control that should have no bearing on the merits of their case.¹⁷⁴ One of the historic hallmarks of entry and exit decisions in immigration law is that they fall under the exclusive purview of the federal government.¹⁷⁵ States are preempted from adopting and enforcing laws that interfere with this occupied field¹⁷⁶ for a variety of reasons that relate to building nationwide goals and policies that apply the same way to all noncitizens across the country.¹⁷⁷ However, this Section argues that immigration deportation decisions have created an odd compromise of uniformity principles that meets the technical requirements

¹⁷³ See *supra* note 155–156 and accompanying text.

¹⁷⁴ See Michael M. O'Hear, *The Original Intent of Uniformity in Federal Sentencing*, 74 U. CIN. L. REV. 749, 753 (2006) (describing uniformity more generally as a concept that “resonates with our most basic instincts about the rule of law” that “the similarly situated should be treated the same”).

¹⁷⁵ See *Hines v. Davidowitz*, 312 U.S. 52, 66–67 (1941) (“[T]he regulation of aliens is so intimately blended and intertwined with responsibilities of the national government that where it acts, and the state also acts on the same subject, the act of Congress, or the treaty, is supreme; and the law of the State, though enacted in the exercise of powers not controverted, must yield to it.”)

¹⁷⁶ See *Arizona v. U.S.*, 567 U.S. 387, 399–400 (2012) (explaining federal sovereignty and state preemption in immigration law).

¹⁷⁷ See *Arizona v. U.S.*, 567 U.S. 387, 409 (2012); *accord* *Negusie v. Holder*, 129 S. Ct. 1159, 1164 (2009) (“The Attorney General's decision . . . may affect our relations with [the alien's native] country or its neighbors.” (quotation omitted)); *Kahn v. INS*, 36 F.3d 1412, 1414 (9th Cir.1994) (“The INA was designed to implement a uniform federal policy”); *Rosendo-Ramirez v. INS*, 32 F.3d 1085, 1091 (7th Cir. 1994) (“National uniformity in the immigration and naturalization laws is paramount: rarely is the vision of a unitary nation so pronounced as in the laws that determine who may cross our national borders and who may become a citizen.”); Amanda Frost, *Overvaluing Uniformity*, 94 VA. L. REV. 1567, 1570 (2008) (conceptualizing the overall costs of federal nonuniformity, stating that “predictability would suffer”).

yet gives way to the very deficiencies that uniformity was meant to prevent.

The intersection of federal deportation decisions with Our Federalism is where the problems of nonuniformity arise. As previously mentioned, there are dozens of grounds of deportability,¹⁷⁸ but these grounds often interact with and rely on state law. For example, the INA enumerates “burglary” as a deportable immigration violation.¹⁷⁹ However, “burglary” means different things across the fifty states. What about “murder,” “arson,” and “crimes involving moral turpitude” that the INA also deems deportable?¹⁸⁰ Trying to apply a uniform rule becomes difficult because states define these crimes differently.

In an attempt to resolve this problem, the Court developed a tool of interpretation called the categorical approach. To determine whether a state crime qualifies as a federal deportable offense as listed in the INA, the Court compares elements from the state crime with the elements of the federal generic version of the crime.¹⁸¹ For example, if a noncitizen was convicted in Iowa of “burglary,” the Court must first define the elements of the federal version of “burglary” as contemplated in the INA, which might contain the elements of A, B, and C. Then, the Court must determine the elements of the crime of conviction; a burglary in Iowa might contain the elements of A, B, and D.¹⁸² If the elements of the federal generic crime do not match those of the state crime, then the state crime cannot qualify as a deportable offense.¹⁸³

The categorical approach is rife with complexity and additional steps,¹⁸⁴ but this simplification is sufficient for this Section’s argument: federal deportation outcomes that are supposed to promote nationwide uniformity actually rely on the vagaries of state law. If Missouri’s burglary statute matches the federal version, and Iowa’s burglary statute does not, the difference between deportation and relief is the difference between

¹⁷⁸ See Cade, *supra* note 141, at 443–46 (outlining the statutory increase in deportable immigration offenses).

¹⁷⁹ 8 U.S.C. §§ 1227(a)(2)(A)(iii); 1101(a)(43)(G) (listing “burglary” as an aggravated felony).

¹⁸⁰ *Id.* § 1101(a)(43)(A), (E)(i).

¹⁸¹ See Sheldon A. Evans, *Categorical Nonuniformity*, 120 COLUM. L. REV. 1771, 1781 (2020) (explaining the first steps of the categorical approach).

¹⁸² See *id.* at 1783–84.

¹⁸³ See *id.*

¹⁸⁴ See *id.* at 1779–84 (explaining the complexity, steps, sub-steps, and different types of categorical approaches used in different contexts).

committing the burglary a few miles apart across state lines.¹⁸⁵ This is not an academic problem, but is more common than one might think. For instance, compare the cases of Everald and Belito, both convicted of possession of marijuana with intent to distribute. Everald's crime was committed in New Jersey and deemed not deportable, whereas Belito's crime was committed in Pennsylvania and was found to be deportable. The statutes were nearly identical between the two states, but the Third Circuit still justified the disparity between the cases. The difference? Pennsylvania's statute was drafted with an "or," meaning that it was interpreted to list several offenses in the "disjunctive," one of which matched the elements of the federal generic crime.¹⁸⁶ New Jersey's was not disjunctive, meaning its elements were less flexible. Now also consider the different outcomes between Luis and Azael for sexual abuse of a minor,¹⁸⁷ Jose and Hidelberto for possessing ten pounds or more of marijuana,¹⁸⁸ Oscar and Jose for distributing methamphetamines,¹⁸⁹ or Sergio and Ricardo for burgling a vehicle.¹⁹⁰ In all of these real cases, both noncitizens committed similar criminal conduct, yet one person was

¹⁸⁵ Compare *Taylor v. U.S.*, 495 U.S. 575, 602 (1990) (using the categorical approach to find that a Missouri conviction for burglary triggered federal sentencing enhancements), with *Mathis v. U.S.*, 579 U.S. 500, 520 (2016) (using the categorical approach to find that an Iowa conviction for burglary did not trigger federal sentencing enhancements).

¹⁸⁶ Compare *Wilson v. Ashcroft*, 350 F.3d 377, 379–81 (3d Cir. 2003) (holding that a New Jersey conviction was not a drug trafficking crime), with *Garcia v. Att'y Gen. U.S.*, 462 U.S. 287, 293 (3d Cir. 2006) (holding that a Pennsylvania conviction was a drug trafficking crime).

¹⁸⁷ Compare *Bedolla-Zarate v. Sessions*, 892 F.3d 1137, 1138, 1141 (10th Cir. 2018) (holding that a Wyoming conviction for sexual abuse of a minor was an aggravated felony), with *Pelayo-Garcia v. Holder*, 589 F.3d 1010, 1014 (9th Cir. 2009) (holding that a California conviction for sexual abuse of a minor was not an aggravated felony).

¹⁸⁸ Compare *Flores-Larrazola v. Lynch*, 840 F.3d 234, 240 (5th Cir. 2016) (holding that an Arkansas conviction for possession of over ten pounds of marijuana was an aggravated felony), with *Arce-Vences v. Mukasey*, 512 F.3d 167, 171 (5th Cir. 2007) (holding that a Texas conviction for possession of over fifty pounds of marijuana was not an aggravated felony).

¹⁸⁹ Compare *United States v. Almanza-Vigil*, 912 F.3d 1310, 1323 (10th Cir. 2019) (holding that a Colorado conviction for "selling or distributing" methamphetamine was not an aggravated felony), with *Perez-Hernandez v. Holder*, 332 F. App'x 458, 462–63 (10th Cir. 2009) (holding that a Utah conviction of "intentional possession of a controlled or counterfeit substance, namely methamphetamine, with the intent to distribute" was an aggravated felony).

¹⁹⁰ Compare *Santos v. INS*, No. 98-60492 (5th Cir. Sept. 1, 1998) (per curiam) (holding that a Texas conviction for burgling a vehicle was an aggravated felony), with *Lopez-Elias v. Reno*, 209 F.3d 788, 791–92 (5th Cir. 2000) (holding that a Texas conviction for burgling a vehicle under the same law was not an aggravated felony).

deported and the other was not based on the nuanced differences between state statutes.¹⁹¹

To many scholars, the categorical approach fulfills the requirements of nationwide uniformity. After all, the same categorical approach is being applied *uniformly* across all jurisdictions.¹⁹² But this argument misunderstands the purpose of uniformity in immigration law. It is not an end in and of itself, but a means to achieve goals in foreign policy, efficiency, and legitimacy.¹⁹³ For example, Arizona’s use of tent camps for migrants and Texas’s attempt to deport immigrants to Mexico hurt America’s relationships with foreign governments and organizations at a time when the country needs to partner with these very governments to find solutions to the migration crisis.¹⁹⁴ Efficiency has also suffered, as judges and scholars alike have decried the complicated categorical approach’s infusion of state law into federal decision-making.¹⁹⁵ And there is certainly a legitimacy argument in a system that deports one but allows another to stay based on the scrivener differences between state statutes.

¹⁹¹ See *United States v. Stitt*, 139 S. Ct. 399, 407 (2018) (recognizing that a categorical analysis “rests in part upon state law”).

¹⁹² Cristina M. Rodríguez, *Uniformity and Integrity in Immigration Law: Lessons from the Decisions of Justice (and Judge) Sotomayor*, 123 YALE L.J. FORUM 499, 503–04 (2014) (describing the categorical approach as a “design [that] thwarts uniformity, the courts’ best efforts notwithstanding”).

¹⁹³ See *supra* notes 175–177 and accompanying text.

¹⁹⁴ See Muzaffar Chishti and Colleen Putzel-Kavanaugh, *The Limits of the Go-It-Alone Approach: U.S. Migration Management Increasingly Requires Other Countries’ Cooperation*, MIGRATION POL’Y INST. (March 27, 2024), <https://www.migrationpolicy.org/article/us-immigration-management-cooperation> (discussing Mexico’s sharp rejection of Texas’s plans to deport noncitizens to Mexico, as well as the importance of the Mexican, Cuban, Venezuelan governments to curb migration to the U.S.); Valeria Fernández, *Arizona’s “Concentration Camp”: Why was Tent City Kept Open for 24 Years?*, THE GUARDIAN (Aug. 21, 2017), <https://www.theguardian.com/cities/2017/aug/21/arizona-phoenix-concentration-camp-tent-city-jail-joe-arpai-immigration> (discussing Arizona’s tent city and Amnesty International’s findings that it was “inhumane, overcrowded and dangerous”).

¹⁹⁵ See, e.g., *De Lima v. Sessions*, 867 F.3d 260, 268 (1st Cir. 2017) (noting that “[e]ven a single such categorical analysis is an arduous task” that “is often difficult and time consuming”); *U.S. v. Vann*, 660 F.3d 771, 787 (4th Cir. 2011) (Agee, J., concurring) (complaining that “[t]he dockets of . . . all federal courts are now clogged with [categorical approach] cases”); *U.S. v. Tavares*, 843 F.3d 1, 19 (1st Cir. 2016) (comparing the categorical approach to a “Rube Goldberg jurisprudence of abstractions piled on top of one another”); *U.S. v. Perez-Silvan*, 861 F.3d 935, 944 (9th Cir. 2017) (Owens, J., concurring) (comparing the categorical approach as “more complicated than reconstructing the Staff of Ra in the Map Room to locate the Well of the Souls”).

The deportation system's nonuniformity must also refocus on the membership criteria it is supposed to foster. Deportation considers national membership because it is a decision on whether to forcibly remove a noncitizen from the country. National membership should not be governed by state law, in part because national membership serves a different purpose than state membership. State citizenship is most often determined by domicile within the state or local jurisdiction; with such domicile, state and local citizens/members are subject to the benefits of membership if they stay within good standing. It is not uncommon for state and local tax dollars to subsidize programs for state and local members, such as in-state tuition at institutions of higher education,¹⁹⁶ or even discounted admission to museums and cultural attractions.¹⁹⁷ Non-members do not enjoy such state and local membership benefits. State and local members are also subject to unique laws based on geographic jurisdiction. Thus, a member can diminish their membership standing in the state and local community if they violate the respective criminal or civil law that governs their geographic community.

Why then should state membership criteria, such as state criminal law, be dispositive towards determining national membership? Adam Cox and Eric Posner conceptualized this as a principle-agent relationship whereby the federal government (the principle) can benefit from the expertise and manpower of the state criminal system (the agent).¹⁹⁸ Because states are have a larger criminal justice footprint than the federal government, state proxies for failed membership criteria—such as criminal convictions—can be used by the federal government for efficiency's sake without having to recreate the process.¹⁹⁹ Undoubtedly, there are many overlaps between the aims of any given state's membership and the goals of national membership. Whether it be committing murder or selling

¹⁹⁶ See Lisa Dickson and Matea Pender, *Do In-State Tuition Benefits Affect the Enrollment of Non-citizens? Evidence from Universities in Texas*, 37 ECON. ED. REV. 126, 127 (2013) (discussing benefits and incentives for states to provide subsidies to in-state citizens to provide access to state institutions of higher learning).

¹⁹⁷ See, e.g., *Discounts, Complimentary Admission, and Passes*, THE MET (last visited Feb. 23, 2025), <https://www.metmuseum.org/policies/complimentary-admission> (describing free and discounted tickets to the Metropolitan Museum of Art for New York City residents); *Ticket Information*, MISS. BOTANICAL GARDENS (last visited Feb. 23, 2025), <https://www.missouribotanicalgarden.org/tickets> (describing discounted admission for the Missouri Botanical Gardens for St. Louis residents).

¹⁹⁸ Adam B. Cox and Eric A. Posner, *The Second-Order Structure of Immigration Law*, 59 STAN. L. REV. 809, 826–27 (2007) (discussing criminal convictions as providing post-entry screening information regarding who should qualify for membership).

¹⁹⁹ *Id.*

imitation clothing,²⁰⁰ state criminal law can serve as a proxy for relevant national membership criteria such as dangerousness and assimilability.²⁰¹ The current deportation system prioritizes some state membership criteria (state criminal law elements) over other states' membership criteria for determining whether a noncitizen should be disqualified from national membership. But if a noncitizen commits murder or sells imitation clothing in Missouri or Iowa, we should judge the noncitizen according to whether this crime is a sufficient departure from these national membership qualities instead of making a national membership decision based on the state in which the crime was committed. A killing of another human being in Missouri illustrates the same level of membership departure as it would if it happened in Iowa.

III. MEASURING MEMBERSHIP

*Amir A. was born in Sudan and immigrated to the U.S. when he was in his thirties, and took up residence in the New York Tri-State area. He participated in clandestine paramilitary training, and participated in a conspiracy to set off bombs across New York City landmarks in 1993. He was convicted for the bombing conspiracy and attempted bombing and sentenced to a thirty-year prison sentence. Upon serving his sentence in federal prison, he was promptly transferred to ICE custody and deported from the country.*²⁰²

The systemic failures of the mass deportation system require a redesign to achieve its original purpose of enforcing membership. While previous Parts discussed these membership purposes and legal deficiencies, this Part considers a thought-project of administrative design that can mitigate these failures with a proper refocus on membership principles.

This Part builds the Membership Guidelines under four considerations. First, it provides the foundation by exploring the costs and benefits of sentencing guidelines in the criminal system. The past forty years of determinant sentencing provides guidance for the Membership Guidelines

²⁰⁰ See 8 U.S.C. §1101(a)(43)(A) (defining murder as an aggravated felony); *Yong Wong Park v. United States*, 472 F.3d 66, 68, 72 (3d Cir. 2006) (holding that selling imitation designer clothing is a deportable offense).

²⁰¹ See Cox & Posner, *supra* note 198, at 826–27.

²⁰² See Joseph P. Fried, *Sheik Sentenced to Life in Prison in Bombing Plot*, N.Y. TIMES (Jan. 18, 1996), <https://www.nytimes.com/1996/01/18/nyregion/sheik-sentenced-to-life-in-prison-in-bombing-plot.html>; *ICE Departs Convicted Terrorist to Sudan*, U.S. IMMIGR. CUSTOMS ENFORCEMENT (Oct. 18, 2019), <https://www.ice.gov/news/releases/ice-deports-convicted-terrorist-sudan>.

to avoid the mistakes of the past. Second, it considers membership in a determinant administrative regime. Membership is an admittedly difficult concept to measure, but immigration law frequently uses temporal and spatial proxies to capture these national community values. The Membership Guidelines would also need to proportionately map out severity of immigration violations to fix the existing failures of the system. These metrics are meant to measure membership as the focal point of the deportation system, while also diminishing the discretion and disproportionality of the status quo.

A. *Guiding the Guidelines*

Over the past forty years, sentencing guidelines have swept across the nation. The federal government and twenty states have some form of a guidelines system.²⁰³ While the federal system has garnered the most attention for its harsh punishments and growing complexity, state guideline systems have been “badly neglected” in academic study because they garner less controversy.²⁰⁴ No two state systems are alike, often making different decisions on everything from offense levels, criminal history calculations, how many grids to implement, and other important design choices that yield different outcomes.²⁰⁵ One of the takeaways of this Section should be the malleability of these many systems. The federal and state governments can pick and choose among a buffet of policy options to best tailor their sentencing systems towards their policy goals. And so too can the Membership Guidelines.

Sentencing guidelines most commonly take the form of a two-dimensional grid that populates values on x- and y-axes.²⁰⁶ As seen in **Figure 2** below,²⁰⁷ the federal government’s sentencing guidelines table

²⁰³ See Kelly Lyn Mitchell, *State Sentencing Guidelines: A Garden Full of Variety*, 81 FED. PROBATION J. 28 (2017) (“[Fifteen] non-federal systems that we have found exhibit the strongest characteristics of sentencing guidelines: Alabama, Arkansas, Delaware, Kansas, Maryland, Massachusetts, Michigan, Minnesota, North Carolina, Oregon, Pennsylvania, Utah, Virginia, Washington, and Washington, D.C.,” and “[f]ive systems that exhibit characteristics of sentencing guidelines but are not included in the analysis throughout this article are Alaska, Florida, Missouri, Ohio, and Tennessee”).

²⁰⁴ See Pryor, *supra* note 519 (arguing that the flaws of the federal system have garnered the most criticism, while many scholars and researchers ignore the successes of state systems).

²⁰⁵ See Richard S. Frase, *State Sentencing Guidelines: Diversity, Consensus, and Unresolved Policy Issues*, 105 COLUM. L. REV. 1190, 1191 (2005) (discussing the similarities, but also the stark differences between state systems).

²⁰⁶ See Eric S. Fish, *Sentencing Immigrants* 12–14 (2025) (unpublished manuscript) (on file with author) (describing the design and function of the USSG).

²⁰⁷ See U.S. SENTENCING COMM’N, GUIDELINES MANUAL ch. 5, pt. A.

measures offense level and severity on these different axes. The x-axis measures a defendant's criminal history based on the number of past convictions. This axis considers recidivism, and the number of past convictions is positively related with an increase in punishment for the defendant's current offense.²⁰⁸ The y-axis measures a defendant's offense level for the current offense, which ranges from minor to severe crimes.²⁰⁹ Similar to criminal history, the severity of the offense level is positively related with an increase in punishment. Putting these axes together, guidelines take facts about the defendant's criminal history and the severity of their current case, and map these x and y values onto a grid that intersects at a point that provides a sentencing range.²¹⁰ Different guideline systems allow for different levels of judicial flexibility within this set sentencing range. Judges always have the discretion to sentence within this range, but many guidelines have expanded this discretion to depart upwards or downwards from this range altogether. Consequently, many guideline systems are merely advisory starting points to help judges determine an appropriate sentence.²¹¹

²⁰⁸ See Fish, *supra* note 206, at 12–14.

²⁰⁹ See *id.*

²¹⁰ See *id.*

²¹¹ See, e.g., Chacon, *supra* note 22, at 143 (discussing guidelines' advisory nature).

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SENTENCING TABLE
(in months of imprisonment)

Offense Level	Criminal History Category (Criminal History Points)					
	I (0 or 1)	II (2 or 3)	III (4, 5, 6)	IV (7, 8, 9)	V (10, 11, 12)	VI (13 or more)
1	0-6	0-6	0-6	0-6	0-6	0-6
2	0-6	0-6	0-6	0-6	0-6	1-7
3	0-6	0-6	0-6	0-6	2-8	3-9
4	0-6	0-6	0-6	2-8	4-10	6-12
5	0-6	0-6	1-7	4-10	6-12	9-15
6	0-6	1-7	2-8	6-12	9-15	12-18
7	0-6	2-8	4-10	8-14	12-18	15-21
8	0-6	4-10	6-12	10-16	15-21	18-24
9	4-10	6-12	8-14	12-18	18-24	21-27
10	6-12	8-14	10-16	15-21	21-27	24-30
11	8-14	10-16	12-18	18-24	24-30	27-33
12	10-16	12-18	15-21	21-27	27-33	30-37
13	12-18	15-21	18-24	24-30	30-37	33-41
14	15-21	18-24	21-27	27-33	33-41	37-46
15	18-24	21-27	24-30	30-37	37-46	41-51
16	21-27	24-30	27-33	33-41	41-51	46-57
17	24-30	27-33	30-37	37-46	46-57	51-63
18	27-33	30-37	33-41	41-51	51-63	57-71
19	30-37	33-41	37-46	46-57	57-71	63-78
20	33-41	37-46	41-51	51-63	63-78	70-87
21	37-46	41-51	46-57	57-71	70-87	77-96
22	41-51	46-57	51-63	63-78	77-96	84-105
23	46-57	51-63	57-71	70-87	84-105	92-115
24	51-63	57-71	63-78	77-96	92-115	100-125
25	57-71	63-78	70-87	84-105	100-125	110-137
26	63-78	70-87	78-97	92-115	110-137	120-150
27	70-87	78-97	87-108	100-125	120-150	130-162
28	78-97	87-108	97-121	110-137	130-162	140-175
29	87-108	97-121	108-135	121-151	140-175	151-188
30	97-121	108-135	121-151	135-168	151-188	168-210
31	108-135	121-151	135-168	151-188	168-210	188-235
32	121-151	135-168	151-188	168-210	188-235	210-262
33	135-168	151-188	168-210	188-235	210-262	235-293
34	151-188	168-210	188-235	210-262	235-293	262-327
35	168-210	188-235	210-262	235-293	262-327	292-365
36	188-235	210-262	235-293	262-327	292-365	324-405
37	210-262	235-293	262-327	292-365	324-405	360-life
38	235-293	262-327	292-365	324-405	360-life	360-life
39	262-327	292-365	324-405	360-life	360-life	360-life
40	292-365	324-405	360-life	360-life	360-life	360-life
41	324-405	360-life	360-life	360-life	360-life	360-life
42	360-life	360-life	360-life	360-life	360-life	360-life
43	life	life	life	life	life	life

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Figure 2. United States Sentencing Guidelines Table

The past forty years of data and experimentation with sentencing guidelines has returned mixed results. Nearly every modern study of these federal and state guidelines have shown that they improve consistency when comparing sentencing patterns between judges, make it more likely that similar defendants are treated similarly, cut down on racial disparities, and increase the transparency of sentencing decisions.²¹² In an ambitious study of federal sentencing disparities under the federal guidelines, Sam Merchant showed that federal judges who use their own discretion to sentence defendants (which is allowed for a small number of federal crimes) sentence up to 15x harsher than those that punish those same crimes using the federal guidelines.²¹³ Other scholars have noted that sentencing disparities are positively related with judicial discretion, even within guideline systems.²¹⁴ In other words, when guidelines are not mandatory or are merely advisory, judges use their discretion in ways that lead to unwarranted and problematic disparities that guideline systems are designed to mitigate.²¹⁵

²¹² See Douglas Berman, *Sentencing Guidelines*, in REFORMING CRIMINAL JUSTICE 109 (Eric Luna, ed. 2017) (arguing that “every serious modern study of U.S. sentencing has reached the conclusion that a well-designed guideline structure provides the best means for the express articulation of sound standards to inform and shape individual sentencing outcomes”); Frase, *supra* note 205, at 1192 (arguing that state guidelines have succeeded to “promote consistency and fairness, set priorities in the use of limited correctional resources, and manage the growth in prison populations”).

²¹³ Sam J. Merchant, *A World without Federal Sentencing Guidelines*, 102 WASH. U. L. REV. (forthcoming 2025) (manuscript at 5), <https://ssrn.com/abstract=4811335> (analyzing sentencing disparities under U.S. Sentencing Guideline §2X5.1, finding that “in almost every analyzed category, judges sentenced harsher when they sentenced without guidelines, sometimes ten to fifteen times harsher”).

²¹⁴ See U.S. SENTENCING COMM’N, DEMOGRAPHIC DIFFERENCES IN FEDERAL SENTENCING PRACTICES: AN UPDATE OF THE BOOKER REPORT’S MULTIVARIATE REGRESSION ANALYSIS 3, 15–16 fig. B (2010), http://www.albany.edu/scj/documents/USSCMultivariateRegressionAnalysisReport_001.pdf (estimating that after the USSG switched from being mandatory to being advisory, the federal sentencing gap between Black and White defendants rose from 5.5% to 23.3%); Ryan W. Scott, *Inter-Judge Sentencing Disparity After Booker: A First Look*, 63 STAN. L. REV. 1, 6–11 (2010) (finding more sentencing disparities before the enactment of the USSG).

²¹⁵ See Jeffrey Ulmer, Michael T. Light, and John Kramer, *The “Liberation” of Federal Judges’ Discretion in the Wake of the Booker/Fanfan Decision: Is There Increased Disparity and Divergence Between Courts?*, 28 JUST. Q. 799, 801 (2011) (finding that in a post-advisory sentencing guidelines regime, “defendant social statuses often influence the likelihood and type of incarceration, sentence length, and guideline departures”); Sarah Krasnostein and Arie Freiberg, *Sentencing Guideline Schemes Across the United States and Beyond*, in OXFORD HANDBOOK TOPICS IN CRIMINOLOGY AND CRIMINAL JUSTICE 1 (2012) (“Empirical evaluations of sentencing practices have

Along with this consensus of consistency and cutting down on disparities, sentencing guidelines do come with significant costs that must be considered.²¹⁶ First, many scholars have noted that disparities still exist under sentencing guidelines, which seems to undermine the very purpose of their existence.²¹⁷ This is certainly true, and unwarranted sentencing disparities—especially those based on race—are still present in guideline systems. In some respects, guidelines risk obscuring disparities if decision-makers wrongly believe that their application alone ensures fairness.²¹⁸ Consequently, it is important to note that sentencing guidelines *reduce* these racial disparities, but they do not eliminate them. This reduction is worthwhile, and it may be naïve to believe that we can design a system that is not somewhat impacted by society’s racial biases.

Second, guideline systems are criticized for being too harsh. Unforgiving mandatory minimums are built into these guidelines and send many non-violent drug offenders, people possessing firearms, and other low-level offenders to prison for significant sentences that can often be more than a decade.²¹⁹ In fact, as many as 40% of federal judges use their limited discretion to sentence below the guidelines range as a post-hoc adjustment signaling the judiciary’s feelings about where proper sentences

repeatedly demonstrated that the amount of unwarranted disparity in the sentences of similarly situated offenders is related to the amount of unregulated sentencing discretion exercised by judges.”).

²¹⁶ MICHAEL TONRY, SENTENCING MATTERS 72 (1996) (categorizing the major criticisms by scholars of sentencing guidelines).

²¹⁷ See, e.g., Sonja B. Starr and M. Marit Rehavi, *Mandatory Sentencing and Racial Disparity: Assessing the Role of Prosecutors and the Effects of Booker*, 123 YALE L.J. 2, 5 (2013) (finding that racial disparities still persist under the USSG in part because this sentencing system does not account for other aspects of discretion such as prosecutorial charging decisions).

²¹⁸ See Richard Bierschbach and Stephanos Bibas, *What’s Wrong with Sentencing Equality*, 102 VA. L. REV. 1447, 1449 (2016) (arguing that “guidelines allow for different sentencing disparities that are much more nuanced and harder to identify and thus fix”); Carol S. Steiker, *Lessons From Two Failures: Sentencing for Cocaine and Child Pornography Under the Federal Sentencing Guidelines in the United States*, 76 L. & CONTEMP. PROB. 27, 49 (2013) (arguing that “unjustified disparities (as well as unjustified uniformities) that arise from [determinant] sentencing can be just as pernicious as those that are produced by discretion”).

²¹⁹ See Sheldon A. Evans, *A Liberty-Balancing Approach to Crime*, 62 AM. CRIM. L. REV. 153, 167–69 (2025) (discussing the prevalence of mandatory minimum sentences across all fifty states and the harsh outcomes they produce, averaging 151 months in prison); see generally Rachel E. Barkow, *Categorical Mistakes: The Flawed Framework of the Armed Career Criminal Act and Mandatory Minimum Sentencing*, 133 HARV. L. REV. 200, 214 n.123 (2019) (discussing the prevalence of federal mandatory minimums for drug trafficking crimes and the unnecessarily harsh penalties they carry).

should fall.²²⁰ The harshness of the guidelines and their adherence to these statutory mandatory minimums raises questions about proper proportionality, and whether such severity serves the underlying goals of the sentencing system.

Third, guideline systems tend to be incredibly complex in a way that can diminish judicial economy.²²¹ The simplistic summary of the grid system above fails to capture the difficulty of determining a defendant's criminal history, and also the many steps, formulas, enhancements, interactions among crimes, and other considerations needed to calculate the correct offense level, as evidenced by the hundreds of pages of detail in the federal guidelines.²²² And many state guidelines follow close behind in their length and complexity.²²³ These guideline systems were never meant to be so long and difficult to understand, but complexity creep advances with more amendments, precedent, and corrections every year.²²⁴ These significant deficiencies have caused some to consider these guideline systems—the federal system in particular—to be a “failure” by not meeting their own purported goals.²²⁵

²²⁰ See Fish, *supra* note 206, at 19 (discussing harshness of USSG sentences, and judicial departures from the guidelines range).

²²¹ See Michael A. Simons, *Prosecutorial Discretion and Prosecuting Guidelines: A Case Study in Controlling Federalization*, 75 NYU L. REV. 893, 915 (2000) (noting that sentencing guidelines have increased the amount of time judges spend making sentencing decisions); Albert W. Alschuler, *The Failure of Sentencing Guidelines: A Plea of Less Aggregation*, 58 CHI. L. REV. 901, 906 (1991) (“Ninety percent of the judges who responded to a survey by the Federal Courts Study Committee reported that the federal guidelines had made sentencing procedures more, not less, time consuming.”).

²²² See Jon O. Newman, *Simplified Guidelines—Now or Never*, 35 FED. SENT’G REP. 5, 5 (2022) (explaining the complexities of the USSG, stating that “[t]he guidelines remain as complex as they were when the first version was issued”).

²²³ See, e.g., *id.* (“The first draft of the Federal Sentencing Guidelines . . . running to nearly 300 pages, appalled us by its complexity.”); SENTENCING GUIDELINES MANUAL, MICH. JUDICIAL INST. (2021) (running over 200 pages long); WASHINGTON STATE ADULT SENTENCING GUIDELINES MANUAL, WASH. CASELOAD FORECAST COUNCIL (2023) (running nearly 500 pages long); MINNESOTA SENTENCING GUIDELINES AND COMMENTARY, MINN. SENT’G GUIDELINES COMM’N (2024) (running over 150 pages long).

²²⁴ See Rebecca Sharpless, *Clear And Simple Deportation Rules For Crimes: Why We Need Them And Why It’s Hard To Get Them*, 92 DENVER L. REV. 933, 950 (2015) (discussing the tendency of complexity creep, where institutions over time tend to implement more legal rules that increase complexity).

²²⁵ See, e.g., Kevin R. Reitz, *Demographic Impact Statements, O’Connor’s Warning, and the Mysteries of Prison Release: Topics from a Sentencing Reform Agenda*, 61 FLA. L. REV. 683, 685 (2009); Frank O. Bowman, III, *The Failure of the Federal Sentencing Guidelines: A Structural Analysis*, 105 COLUM. L. REV. 1315, 1315–18 (2005).

But even in light of these purported “failures,”²²⁶ perhaps the most compelling argument in favor of guideline systems is that even their staunchest critics do not want to return to a pre-guidelines era.²²⁷ For all of the supposed costs of sentencing guidelines, the consensus still believes that they are well worth it. The most critical scholars of guideline systems nearly all propose reforms to improve and fix the problems rather than go back to the morass of indeterminant sentencing.²²⁸ The devil is in the details, and many agree that the right design choices can maintain the benefits of guideline systems while mitigating its errors. Upon this foundation, this Article proceeds cautiously and carefully towards such a goal.

B. Structuring Guidelines

Immigration is already renowned for being one of the most complex areas of law,²²⁹ so any Membership Guidelines must learn from the downsides of complex sentencing guidelines by simplifying the system. Many states have recognized this complexity problem and have moved towards simplification in the past few decades.²³⁰ The Membership Guidelines must be complex enough to pinpoint membership criteria with a high degree of accuracy, but must be simple enough to be consistently and uniformly implement by IJs and attorneys with a high degree of predictability.²³¹ This Section conceptualizes time, severity, and space in an effort to balance these complexity goals.

²²⁶ See, e.g., Reitz, *supra* note 225, at 685; Bowman, *supra* note 225, at 1315–18.

²²⁷ See, e.g., Gerard E. Lynch, *Marvin Frankel: A Reformer Reassessed*, 21 FED. SENT’G REP. 235, 239 (2009) (“No one today advocates a return to the unbridled discretion and total indeterminacy that characterized sentencing in the 1950s and 1960s.”); Berman, *supra* note 212, at 109 (“Despite the many ugly facets of the federal system’s experience with guidelines, no policymaker or researcher has ever called for a return to a wholly discretionary system with judges having unfettered and unreviewable authority”).

²²⁸ See, e.g., AM. BAR ASS’N, STANDARDS FOR CRIMINAL JUSTICE SENTENCING xxi (3d ed. 1994) (advocating for reformed sentencing guidelines); Kevin R. Reitz, *American Law Institute, Model Penal Code Sentencing: A Plan for Revision*, 6 BUFF. CRIM. L. REV. 525, 557–60 (2002) (making recommendations to the ALI as the official reporter of a task force to revise the MPC by adopting a guidelines sentencing system that takes the best parts of state sentencing guidelines).

²²⁹ See Stephen Yale-Loehr, *Ins and Outs of Immigration Law*, CORNELLIAN (Oct. 29, 2021), <https://alumni.cornell.edu/cornellians/immigration-law/> (“Immigration law has been called the second most complex area—second only to tax law—and there are often life-or-death consequences if somebody is fleeing persecution.”).

²³⁰ See Frase, *supra* note 205, at 1207 (arguing that there is a consensus among policy-makers that simplicity of guidelines promotes positive systemic outcomes).

²³¹ See Louis Kaplow, *A Model of the Optimal Complexity of Legal Rules*, 11 J.L. ECON. & ORG. 150, 150–51 (1995) (contemplating optimal complexity of legal rules).

1. Time

Conceptualizing time as a legal measurement for membership is common in immigration law.²³² The longer a noncitizen has been in the country, the more stake they have in being a member of the national community. Admittedly, time is not a perfect proxy for membership. Sociocultural theorists who are motivated by racial ideology might believe that certain racial or religious minorities should always be considered as non-members no matter how much time they have spent in the country. Civic theorists might also complain that long-time residency does not necessarily mean that a noncitizen has adopted the values of civic engagement and loyalty to American-style democracy.

Although not perfect, continuous residency is perhaps the most accurate proxy for membership because it requires investment in a person's community through developing social ties, family formation, community service, and social assimilation.²³³ It also requires commitment to contributing economically to the country because long-term residence often requires consistent employment and paying taxes. If a noncitizen has lived in the country for five, ten, or twenty years without running afoul of certain criminal and immigration violations, they have imbedded themselves into the community in a way that honors the most important membership criteria that animate both sociocultural and civic theories of assimilation and self-determination.²³⁴ These noncitizens have assimilated sufficiently to fit-in and contribute to America. Further, the members of American society have lived and worked alongside these noncitizens for years, signaling their positive judgment of accepting these noncitizens socially and economically into the community.

The measurement of time also has the advantage of excising a large amount of judicial discretion from deportation decision-making. Instead of creating a totality-of-the-circumstances standard, or a narrative guidelines standard that weighs multiple, non-exhaustive factors of membership, the standard of time is easy to prove and leaves very little discretion to IJs. Immigration courts do not need to engage in mini-trials to determine

²³² See generally Stumpf, *supra* note 13 (studying how time impacts several areas of immigration law, and its relevancy in determining citizenship).

²³³ See 8 U.S.C. §§ 240A(a)(2), (b)(1)(A) (requiring continuous presence and residence in the country to be eligible for different forms of cancellation of removal); 1255(a)(2)–(3) (requiring permanent residence in the country for a number of years to be eligible for adjustment of status).

²³⁴ See Chacon, *supra* note 136, at 676 (recognizing that deportation is less of a penalty for those who recently arrived than it is for those who have laid down roots in the country).

church membership, volunteer service, employment history, marriage status, and so forth. Such a system would undoubtedly lead to some IJs considering volunteer service more important than other IJs, and we would wind up in the same discretionary morass as the status quo. Instead, by creating a uniform standard that measures a noncitizen's residency in the country, we are capturing much of membership's purpose without injecting disparities that frequently accompany discretion.

Similar to sentencing guidelines, a person's past could be measured on the x-axis of a Membership Guidelines table. A noncitizen begins their membership journey when they first enter the country, whether that be through legal or other means. Thus, the most consequential question is the following: at what point should a person's time and contributions to the country deem them a sufficient member to be protected from the harsh sanction of deportation? This is a difficult question that this thought project does not seek to answer with empirical analysis or a deep cost-benefit administrative conclusion. But existing immigration law might have some clues for future policymakers. Congress has designed penalties for noncitizens that leave the country for longer than six months;²³⁵ additionally, certain noncitizens must serve a probationary period that last for two years before receiving permanent status;²³⁶ and perhaps most importantly, a noncitizen only becomes eligible for naturalization after five years of permanent residency.²³⁷

Setting the right temporal measurements of membership along the x-axis is important to determine who the Membership Guidelines is designed to capture. By setting the minimal temporal requirements starting at two years of residency, or five years, we are making a design choice that prevents incentivizing undocumented immigration. If the minimal requirement grants membership benefits after one day of residency, there might very well be migrants who come across the border knowing that they will no longer be subject to deportation under this one-day-membership rule. However, setting the minimum standard for membership at two or five years sufficiently deters new migrants (who would still be subject to deportation) while also rewarding the membership qualities that long-time residents have built.

These temporal membership design choices are not without flaws and are meant to be proof of concept for a larger policy discussion. Just as sentencing guidelines are criticized for arbitrary cutoffs, categorizations

²³⁵ See 8 U.S.C. § 1229b(d)(2)(A).

²³⁶ See *id.* §§ 1186(a)(1), 1186A(a)(1), 1186(d)(2)(A).

²³⁷ See *id.* § 1427(a).

that are too wide or too narrow, and irrational distinctions,²³⁸ so too will the Membership Guidelines need the flexibility to work through these design choices after additional information and research.

2. Severity

Similar to sentencing guidelines, a person's current conduct could be measured on the y-axis of a Membership Guidelines table. Admittedly, there are less indications from the INA regarding severity; and where Congress has implemented distinctions among immigration violations, they do not proportionally track with membership criteria. For example, the INA differentiates between normal crimes and aggravated felonies.²³⁹ While both crimes and aggravated felonies subject a noncitizen to deportation, the latter adds additional hurdles by mandating pre-deportation detention and foreclosing many avenues of relief.²⁴⁰ But the enumerated list of aggravated felonies is a bloated collection of over forty crimes that cover everything from murder²⁴¹ to obstruction of justice.²⁴² These crimes are quite different in severity from both a criminal justice standpoint and an immigration membership standpoint. The INA also deports noncitizens for committing crimes involving moral turpitude, which does not have a statutory definition but serves as a catchall from a bygone era where such antiquated legal terms were common.²⁴³

As a first step of clarification, these Membership Guidelines would not impact the criminal legal system. The status quo will remain, whereby a noncitizen that commits a crime can be convicted of that crime and serve a prison sentence in the criminal system while simultaneously being declared deportable under immigration law.²⁴⁴ But, just as there is

²³⁸ See, e.g., William Pryor, Jr., *Returning To Marvin Frankel's First Principles In Federal Sentencing*, 29 FED. SENT'G REP. 95 (2017) (calling for a new "system of presumptive guidelines, a radically simpler system with wider sentencing ranges and fewer enhancements").

²³⁹ Compare 8 U.S.C. § 1227(a)(2)(A)(i) (discussing crimes involving moral turpitude), with *id.* §§ (a)(2)(A)(iii), 1101(a)(43) (discussing and differentiating aggravated felonies).

²⁴⁰ See TOSH, *supra* note 1, at 1 (discussing the heightened ramifications of being charged with an aggravated felony).

²⁴¹ *Id.* § 1101(a)(43)(A).

²⁴² *Id.* § 1101(a)(43)(S).

²⁴³ *Id.* § 1182(a)(2)(A)(i)(I). See generally Julia Ann Simon-Kerr, *Moral Turpitude*, 2012 UTAH L. REV. 1001 (2012) (tracing the history of the term "moral turpitude" and its use throughout American law going back to the early 1800s).

²⁴⁴ See, e.g., *supra* notes 24, 108, 202 and accompanying text.

proportionality in criminal sentences, the Membership Guidelines introduces the same into immigration sanctions.

The Membership Guidelines should start by organizing immigration violations according to their severity into offense levels.²⁴⁵ Determining offense levels is one of the more complex aspects of sentencing law.²⁴⁶ It would require detailed analysis of every immigration violation and the corresponding justification of its offense level. For purposes of this Article, only a few design choices are necessary to justify the big-picture goals of ordinal proportionality in the Membership Guidelines.²⁴⁷

First, organizing immigration violations into offense levels requires many sound judgement calls based upon the violation's impact on membership criteria. Obtaining a legal temporary visa and staying past the designated departure date²⁴⁸ is less severe and diminishes less of a noncitizen's membership claim than crossing the border without any authorization or legal accountability.²⁴⁹ Re-entering the country after being deported²⁵⁰ also signals more of a rejection from membership criteria and shows more disdain for the law than either of the above violations. Continuing down this rabbit hole, we might also consider that drug and firearm violations²⁵¹ are less severe than sex trafficking violations.²⁵² Terrorism²⁵³ and Sedition²⁵⁴ might be considered on the same level as Murder,²⁵⁵ but there could even be an argument that Terrorism and Sedition illustrate stronger rejections of national membership because they are explicit attempts to intimidate and overthrow the very government that protects American membership as an institution. This Article does not purport to solve all of these questions, but it does outline the building blocks of a better, streamlined system.

Another important design choice is to map sanctions onto these offense levels. Just like sentencing guidelines have a range of prison

²⁴⁵ See Mitchell, *supra* note 203, at 33 (noting that many states use between "10-15 categories" of offense levels).

²⁴⁶ See *supra* note 221–224 and accompanying text.

²⁴⁷ See ROB CANTON, WHY PUNISH?: AN INTRODUCTION TO THE PHILOSOPHY OF PUNISHMENT 65 (2017) (describing ordinal proportionality as "assigning heavier punishments to more serious crimes, lesser punishments to less serious offenses and enhancing consistency").

²⁴⁸ 8 U.S.C. § 1227(a)(1)(C).

²⁴⁹ *Id.* § 1182(a)(9)(B).

²⁵⁰ *Id.* § 1182(a)(9)(A).

²⁵¹ *Id.* § 1227(a)(2)(B).

²⁵² *Id.* §§ 1182(a)(2)(D)(ii); 1101(a)(43)(K)(i)–(ii).

²⁵³ *Id.* § 1182(a)(3)(B).

²⁵⁴ *Id.* § 1182(a)(3)(A)(iii).

²⁵⁵ *Id.* § 1101(a)(43)(A).

sentences, fines, and probationary punishments, so too should immigration violations have a range of civil sanctions that fit the severity of the violation. For the most severe violations, such as Terrorism, Sedition, Murder, and others in this category, deportation might still be an appropriate sanction. These violations represent the most serious rejection of American membership, and should be met with removing somebody from the membership. Violations that might be closer to the middle of the y-axis, such as drug and firearm crimes, might be better handled with probationary surveillance. Probation is a common criminal punishment that allows the government to surveil defendants for a certain period of time.²⁵⁶ Defendants often have to check-in with probation officers who keep them accountable and provide resources to integrate into society.²⁵⁷ Probation also requires that defendants adhere to certain conditions of conduct.²⁵⁸ Similar to probation, if a noncitizen violates certain immigration laws during their term of probation, they would be subject to deportation.²⁵⁹ Finally, minor immigration violations such as overstaying a visa or even illegally entering the country might only consider a pecuniary fee that can range from small to large based on the violation. Disparities of pecuniary sanctions should be policed, but it is less worrisome than deportation disparities. The Membership Guidelines should indeed develop further details about the appropriate ranges of these fines, and they may even learn from family law formulas that calculate things like child support and alimony by quick and simple equations to ensure fair application.²⁶⁰

²⁵⁶ See Joan Petersilia, *Probation in the United States*, PERSPECTIVES 30, 30–31 (Spring 1998) (defining probation as “[a] court-ordered disposition alternative through which an adjudicated offender is placed under the control, supervision and care of a probation staff member in lieu of imprisonment, so long as the probationer meets certain standards of contact”).

²⁵⁷ See Daniel F. Piar, *A Uniform Code of Procedure for Revoking Probation*, 31 AM. J. CRIM. L. 117, 118 (2003) (describing process of meetings with probation officers that often ask about a person’s employment or treatment progress).

²⁵⁸ See Petersilia, *supra* note 256 at 31 (describing various conditions, such as adhering to treatment programs, reducing criminal socialization, and other rehabilitative programs).

²⁵⁹ See Piar, *supra* note 257, at 118 (describing the process by which a person on parole can be called before the court if they violate a term of their parole, at which time such parole might be revoked and the person remitted to incarceration).

²⁶⁰ See Jane C. Venohr and Tracy E. Griffith, *Child Support Guidelines: Issues and Reviews*, 43 FAM. CT. REV. 415, 415–16 (2005) (describing that many states follow strict guidelines for determining the amount and issuing child support, but that many of these states do not follow them).

These Membership Guidelines are specifically designed to tackle the problems of rampant discretion and disproportionality in the deportation system. Much like the temporal x-axis that measures membership according to residency, the y-axis offense levels represent a first step towards reform that is meant to spark additional policy discussion. With the right information and design choices, the deportation system can be redesigned to mitigate the harms of disproportionality by measuring severity against membership criteria.

3. Space

The format of the Membership Guidelines greatly mitigates the systemic membership failures of discretion and disproportionality, but the problem of nonuniformity caused by federalism still remains. This section argues for a conduct-based approach that would hold noncitizens accountable for the actual conduct of their immigration violation, as opposed to the current categorical approach that relies on the differing elements of state law.²⁶¹

The problem that still remains is that even with a well-defined y-axis of proportional immigration violations, different states may define murder, burglary, or other crimes differently. For example, drug trafficking constitutes an aggravated felony in immigration law, but states define it differently.²⁶² In Missouri, first-degree drug trafficking is defined as distributing more than 30 grams of heroin, 150 grams of cocaine, or a host of other controlled substances at various weights.²⁶³ Contrastingly, Iowa defines its corollary crime of prohibited drug distribution as delivering or possessing more than 100 grams of heroin, 500 grams of cocaine, or a similar host of other controlled substances at various weights.²⁶⁴ When the INA, and by extension the Membership Guidelines, expressly enumerate “illicit trafficking in a controlled substance” as a deportable immigration violation,²⁶⁵ which law should control?

²⁶¹ See, e.g., Sheldon A. Evans, *Punishing Criminals for Their Conduct: A Return to Reason for the Armed Career Criminal Act*, 70 OKLA. L. REV. 623, 665–67 (2018) (arguing that a conduct-based approach would lead to consistent results, save judicial economy, and solve ideological problems).

²⁶² 8 U.S.C. § 1101(a)(43)(B).

²⁶³ See MO. REV. STATS. § 579.065(1)–(2) (defining first-degree drug trafficking according to types of controlled substances and their respective weight in grams).

²⁶⁴ See IOWA CODE § 124.401(a)(1)–(2)(b) (defining prohibited manufacture, delivery, and possession of controlled substances according to types of controlled substances and their respective weight in grams).

²⁶⁵ 8 U.S.C. § 1101(a)(43)(B); accord *id.* at § 1182(a)(2)(C).

A conduct-based approach recognizes the primacy of federal law by asking whether the noncitizen's conduct fits within the federal definition of the immigration violation. First, immigration officials would determine the necessary elements of enumerated violations. This first step alone is a herculean effort to be taken on by immigration officials at the agency level, which might expand any Membership Guideline manual into more than a few dozen pages to outline such elements for easy reference by IJs and higher courts. Second, IJs would determine the noncitizen's conduct that gave rise to the immigration violation. This would require a burden shift, where government prosecutors in immigration court would need to meet a burden of proof by submitting credible evidence that proves the noncitizen's conduct that allegedly meets the standard of an immigration violation. If the government cannot meet their burden to credibly prove a noncitizen's conduct, then the immigration case would have to be dismissed altogether.²⁶⁶ Third, IJs and the attorneys in immigration court would argue and adjudicate whether the violation conduct from the second step fits the federal elements from the first step.²⁶⁷ No longer would IJs and higher courts need to parse through state law elements and compare them to federal elements, eschewing the facts of the case before them; instead, the noncitizen would be held responsible for the actual conduct of their immigration violation.²⁶⁸

This would resolve much of federalism's nonuniformity problems in deportation outcomes. Conduct in Missouri would be treated the same as conduct in Iowa. The federal sanction of deportation would be solely based on federal law, introducing a level of uniformity not currently enjoyed in the deportation system. This conduct-based approach would not be without hiccups and its own uniformity issues that are worth weighing. For example, there might still be room for state-level nonuniformity based on unique state criminal procedure. Missouri may keep accurate state criminal court records whereas Iowa may not. Consequently, the government might have a harder time to prove a noncitizen's conduct in

²⁶⁶ See Evans, *supra* note 181, at 1816 (explaining government evidentiary burdens with *Shepard* documents). But See Eric S. Fish, *The Paradox of Criminal History*, 42 CARDOZO L. REV. 1373, 1394–96 (2020) (noting that many criminal courts do not record a “factually rich narrative account of what the defendant actually did”).

²⁶⁷ See Evans, *supra* note 181, at 1816 (explaining the three steps of a conduct-based approach).

²⁶⁸ See Evan Tsen Lee, *Regulating Crimmigration* 23 (Univ. of Cal. Hastings Coll. of Law, Res. Paper No. 128, 2015) (arguing that the categorical approach “cuts against the grain of our intuitions about rough justice” because it does not base accountability on the facts of what a defendant did or “what happened here” in the instant case).

Iowa than a similar noncitizen in Missouri because of the differences of state procedure.²⁶⁹ These procedural state differences are indeed worrisome, but are not nearly as frequent as the differences in substantive state law. Any system that seeks to create national uniformity will have to concede that perfect uniformity is not possible, and such minor procedural aspects of state criminal records is one such area that must be considered in order to come closer to the goal of ensuring that a noncitizen's conduct is given priority in a deportation system that seeks to measure membership qualities.

This conduct-based approach to the Membership Guidelines would serve to realign the deportation system towards national (instead of state) membership. If membership is a function of measuring a person's contribution and belonging to the nation, then a person's conduct should determine national membership qualities regardless of where they reside within the nation. Focusing on conduct brings the deportation system closer to this ideal.

IV. ADMINISTERING MEMBERSHIP

*Lundy K. was born in a Thai refugee camp after her parents fled the genocide in Cambodia of the Khmer Rouge. When she was one-year-old, she and her family came to the U.S. as refugees and were granted permanent residence. When Lundy was in college, she was pulled over by police and admitted to possessing ecstasy. She pled guilty and served three months in jail. She moved back in with her parents and enrolled in a Bachelor's Degree program. She filled her time working with local charities and with larger organizations such as Habitat for Humanity and March of Dimes. She picked up the pieces of her life, got married, and welcomed a child. However, ICE used Lundy's drug conviction to place her in deportation proceedings. It wasn't until a pro bono legal team took up her case to have Lundy's guilty plea vacated that she was able to successfully obtain U.S. citizenship.*²⁷⁰

²⁶⁹ See Evans, *supra* note 181, at 1817 (considering the costs of state-by-state procedural differences in assessing a person's misconduct from criminal history documents).

²⁷⁰ Lundy Khoy, *This Holiday Season, I am Finally Free, but American Still Isn't*, S.E. RES. ACTION CTR. (Dec. 4, 2023), <https://searac.org/news/this-holiday-season-i-am-finally-free-but-america-still-isnt/>.

Thinking through the design choices of Membership Guidelines provides a foundation for legal change. Yet, such a change would not be possible without administrative restructuring. The Department of Homeland Security (DHS) retains most of the power and discretion in the deportation system,²⁷¹ but the Department of Justice (DOJ) also exercises discretion over various forms of deportation relief while also maintaining a level of control over IJs that are employees of the agency.²⁷² This section expands the thought project to cover the administrative design necessary to implement Membership Guidelines in a way that does not contradict existing immigration statutes. First, it considers the values of administrative expertise in immigration law that could create an independent Membership Guidelines commission to further research and answer the lingering questions left above. Second, it highlights the little-known fact that legal deportability is different from practical deportation. While the immigration statute might require IJs to declare somebody deportable, executive agencies are not required to actually deport that noncitizen. Third, the judicial dependence of IJs turns out to be an administrative advantage to centralizing a uniform system of Membership Guidelines that would be binding in immigration court. While mandatory sentencing guidelines came under constitutional scrutiny,²⁷³ the same problems are avoided in immigration courts' unique place in the DOJ.

A. *Commission Expertise*

The implementation of Membership Guidelines by DHS or the DOJ should be accompanied by the creation of an Immigration Sentencing Commission (the Commission) of sorts. The federal sentencing system is supported in large part by the U.S. Sentencing Commission, and eighteen

²⁷¹ See Adam B. Cox and Cristina M. Rodriguez, *The President and Immigration Law*, 119 YALE L.J. 458, 518 (2009) (discussing the administrative structure of immigration enforcement, and Congress's decision to house immigration enforcement within DHS).

²⁷² See *id.* (discussing IJ's and immigration court's housing in the Executive Office of Immigration Review, which is a subdivision of the DOJ); IMMIGRATION AND CITIZENSHIP: PROCESS AND POLICY 280-81 (Thomas Alexander Aleinikoff, *et al.*, eds., 6th ed. 2008) (describing the creation of EOIR in 1983 as well as Congress's later decision to keep EOIR in DOJ rather than to transfer it to DHS).

²⁷³ See, e.g., *U.S. v. Booker*, 543 U.S. 220, 259 (2005) (finding that the USSGs violated defendants' Sixth Amendment rights, striking down "the provision that requires sentencing courts to impose a sentence within the applicable Guidelines range (in the absence of circumstances that justify a departure) . . . and the provision that sets forth standards of review on appeal, including de novo review of departures from the applicable Guidelines range").

states support their own guideline systems with state sentencing commissions.²⁷⁴ These commissions tend to be housed in the executive branch as independent agencies,²⁷⁵ but often serve as a bridge between all three branches of government. Serving in the executive branch gives these commissions enough executive flexibility to interpret criminal statutes in a way that promotes effective enforcement. Commissions also serve advisory roles to their respective legislatures, often having the power to change criminal statutes under the delegation of their legislature.²⁷⁶ And these commissions often benefit by appointing judges to serve as commissioners to direct the agency towards the pulse of the judiciary who must punish defendants under the guidelines.²⁷⁷

The true benefit of creating a new federal agency is to sufficiently insulate such decision-making from politics while also cultivating expertise to design a purposive and responsive deportation system.²⁷⁸ The Membership Guidelines outlined in Part III address costs and benefits that only begin to touch on what a fully functioning, reformed deportation system would require. Questions about the x-axis and its temporal membership categories can be answered by experts at the Commission based on years of empirical analysis of deportation data. Questions about the y-axis and its categories of proportional severity can similarly be studied through rigorous research that might recategorize violations, create more or less offense levels, and outline the federal elements for each of these violations under a conduct-based system. The Commission would also define the sanctions in the Membership Guidelines, expanding the

²⁷⁴ See Mitchell, *supra* note 203, at 29 (recording prevalence of sentencing commissions among states that have guidelines); see generally Rachel E. Barkow, *Sentencing Guidelines at the Crossroads of Politics and Expertise*, 160 U. PA. L. REV. 1599 (2012) (discussing the agency-level benefits of expertise in sentencing through commissions).

²⁷⁵ See Mitchell, *supra* note 203, at 30 (studying state sentencing commissions and concluding that “[b]y far the most common placement is within the Executive Branch”).

²⁷⁶ See *id.* at 28 (discussing the power of sentencing commissions to revise guidelines and to advise legislatures based on criminal justice expertise).

²⁷⁷ See, e.g., *Former Commissioner Information*, U.S. SENT’G COMM’N. (last visited Feb. 25, 2025), <https://www.ussc.gov/about/who-we-are/commissioners/former-commissioner-information> (listing over a dozen federal judges that have served terms as appointed commissioners for the U.S. Sentencing Commission).

²⁷⁸ See Paul Hofer, *After Ten Years of Advisory Guidelines, and Thirty Years of Mandatory Minimums, Federal Sentencing Still Needs Reform*, 47 U. TOL. L. REV. 649 (2016) (recognizing the importance of insulating commissions from partisan politics and allowing them to make decisions based on research and consultation); Alschuler, *supra* note 221, at 901 (noting the success of sentencing commissions in Minnesota and Washington to slow the impacts of mass incarceration because of their insulation from politics).

sanction range for probationary periods, determining what violations merited deportation, and the gradation of fines. The mere value of collecting information based on the matrix of membership tiers built into the Membership Guidelines would be of tremendous value to further fix and reform the deportation system.

Following the administrative tradition, these types of decisions would be evidence-based according to a careful cost-benefit analysis.²⁷⁹ When taking such decisive action to deprive a person of their membership, and with it, separating them from their life, family, employment, social networks, and much more, the government must justify such actions with more than mere claims sovereign prerogative.²⁸⁰ Many sentencing commissions seek to do this through fiscal analysis and forecasting on the true costs of incarceration;²⁸¹ in immigration, we have yet to fully understand the full costs of the deportation system because so little information is collected and shared by the existing agencies with control over the system.²⁸² Thus, an evidence-based regime that employs expertise from researchers, policy-makers, IJs, and other invested parties is essential for an undertaking of this magnitude.

Creating a new agency and blindly relying on expertise should still operate with reasonable safeguards. Much has been written about the types of expertise and value of expertise in criminal sentencing.²⁸³ For example, who should qualify as experts given that it is mostly lay people who have the most experience and suffer the greatest impacts of the criminal legal system.²⁸⁴ Also, adequate checks must be put in place to ensure that

²⁷⁹ See Richard S. Frase, *Can Sentencing Guidelines Commissions Help States Substantially Reduce Mass Incarceration?*, 104 MINN. L. REV. 2781, 2783 (2020) (listing the advantages of sentencing commissions that “can collect data, acquire expertise, and bring an evidence-based, comprehensive . . . , and long-term perspective to complex public policy questions); Barkow, *supra* note 274, at 1606 (describing cost-benefit analysis as “a centerpiece of the modern regulatory state”).

²⁸⁰ See *supra* notes 129–134 and accompanying text.

²⁸¹ See Barkow, *supra* note 274, at 1605 (explaining the importance and directive of sentencing commissions’ fiscal forecasting of changes to the guidelines, and how it will increase or decrease costs spent on incarceration).

²⁸² See *supra* note 134 and accompanying text.

²⁸³ See generally Benjamin Levin, *Criminal Justice Expertise*, 90 FORDHAM L. REV. 2777 (2022).

²⁸⁴ See, e.g., Jocelyn Simonson, *Police Reform Through a Power Lens*, 130 YALE L.J. 778, 849–58 (2021) (challenging the traditional determination of who is considered an “expert” in criminal policy and arguing that community members who actually experience the brunt of policing and punishment should also be recognized as experts); Laura I. Appleman, *Local Democracy, Community Adjudication, and Criminal Justice*, 111 NW. U. L. REV. 1413, 1413 (2017) (arguing that “many of our criminal justice woes

experts are not given carte blanche authority. In many jurisdictions, the sentencing commission is subject to administrative law's notice-and-comment rules before they are able to change their respective sentencing guidelines.²⁸⁵ Additionally, the legislature is often given the power to override guidelines by passing a law or resolution to prevent any such changes from going into effect.²⁸⁶ Federal and state judges would also retain their power to strike down guidelines that are unconstitutional and are otherwise inconsistent with legislative statutes.²⁸⁷

Implementing the Membership Guidelines would go hand-in-hand with an independent Commission to research and empirically justify the most important questions of legal and administrative design.²⁸⁸ And determining how to measure membership should be the core of this mission. This Article is a starting point, but certainly not an ending point for the expertise necessary going forward.²⁸⁹

B. Deportability versus Deportation

An important practical reality that might allow agency-level flexibility is the difference between deportability and deportation. As explored above, the INA outlines dozens of immigration violations that define deportability.²⁹⁰ But contrary to popular belief,²⁹¹ there is no statutory

can be traced to the loss of the community's decision-making ability in adjudicating crime and punishment").

²⁸⁵ See Mitchell, *supra* note 203, at 31 (noting the necessary compliance with notice-and-comment rules in various jurisdictions).

²⁸⁶ See *id.* at 31 (stating that several jurisdictions, including the federal government, allow for such legislative override).

²⁸⁷ See, e.g., *U.S. v. Booker*, 543 U.S. 220, 259 (2005) (finding that the USSGs violated defendants' Sixth Amendment rights, striking down "the provision that requires sentencing courts to impose a sentence within the applicable Guidelines range (in the absence of circumstances that justify a departure) . . . and the provision that sets forth standards of review on appeal, including de novo review of departures from the applicable Guidelines range").

²⁸⁸ See, e.g., *United States v. Reyes-Hernandez*, 624 F.3d 405, 418 (7th Cir. 2010) ("Kimbrough instructs sentencing courts to give less deference" where the Commission is not acting "in its characteristic role, in which it typically implements guidelines only after taking into account 'empirical data and national experience.'" (quoting Kimbrough, 552 U.S. at 109)); *United States v. Rodriguez*, 527 F.3d 221, 227 (1st Cir. 2008) ("[G]uidelines and policy statements [not based on empirical data and national experience] deserve less deference . . ." (citing Kimbrough, 552 U.S. at 109-10)).

²⁸⁹ See Barkow, *supra* note 274, at 1606 (noting the sentencing commission's role to use expertise to serve political goals).

²⁹⁰ See Cade, *supra* note 141, at 443-46 (outlining the statutory increase in deportable immigration offenses).

²⁹¹ See, e.g., *Mandatory Deportation Violates American Values of Due Process and Unfairly Imposes a Double Punishment*, NAT'L IMMIGRANT JUST. CTR. (last visited Jan.

mandate that requires immigration officials to deport every noncitizen that is declared deportable.²⁹² In fact, the INA does not mandate deportation for any immigration violation.²⁹³ For example, the INA has a provision that declares undocumented people as deportable.²⁹⁴ They may be brought before an IJ who interprets the statute to legally declare the noncitizen deportable. The IJ soon thereafter could issue an order of deportation.²⁹⁵ And still, executive actors are not required to deport that person. The legal status of deportability is separate from the executive action of physically deporting the noncitizen from the country.

The role of the INA is to fulfill the legislative prerogative to define deportability; the role of DHS is to execute the laws using agency-level discretion. The principle that “not every deportable person should be deported,” is a longstanding discretionary decision imbedded in DOJ memorandums.²⁹⁶ Further, the Supreme Court has upheld this understanding at every step of immigration procedure, including the prosecutorial decision to pursue a case of deportability²⁹⁷ and then agency-level decision to facilitate deportation.²⁹⁸ This means that virtually all of the noncitizens deported from this country are done so on a discretionary

20, 2025), https://www.ilrc.org/sites/default/files/resources/mandatory_deportation_backgrounder_final_w_ijn_logo1.pdf (describing deportation as mandatory).

²⁹² See, e.g., Alicia Triche, *Pursue Removal or Drop the Case? U.S. Immigration and Customs Enforcement and Prosecutorial Discretion*, FED. LAWYER 12, 12 (2014) (discussing the INA’s function to defining when an alien “is deportable, without mandating removal”).

²⁹³ See Cade, *supra* note 141, at 56 (stating that “nowhere has Congress ever mandated or even suggested that the executive must deport all persons who are removable on criminal grounds (or all members of any particular subgroup of deportable noncitizens”).

²⁹⁴ 8 U.S.C. § 1182(a)(6).

²⁹⁵ See Hiroshi Motomura, *The Discretion That Matters: Federal Immigration Enforcement, State and Local Arrests, and the Civil-Criminal Line*, 58 UCLA L. REV. 1819, 1841 (2011) (citing Meissner Memorandum at 2).

²⁹⁶ *Exercising Prosecutorial Discretion*, U.S. DEP’T OF JUST. (Nov. 17, 2000), <https://niwaplibrary.wcl.american.edu/wp-content/uploads/2015/IMM-Memo-ProsDiscretion.pdf> (accessed June 6, 2024).

²⁹⁷ See *Arizona v. U.S.*, 567 U.S. 387, 396 (2012) (“A principal feature of the removal system is the broad discretion exercised by immigration officials. Federal officials, as an initial matter, must decide whether it makes sense to pursue removal at all.”)

²⁹⁸ See *Reno v. Am.-Arab Anti-Discrimination Comm.*, 525 U.S. 471, 483–84 (1999) (“At each stage [of the deportation process] the Executive has discretion to abandon the endeavor”).

basis; the federal government is not obligated to deport, but often exercises its authority to do so.²⁹⁹

As a matter of statutory interpretation, the INA does indeed mandate executive officers to take action in certain circumstances, such as where it mandates the Attorney General to detain noncitizens who have committed aggravated felonies.³⁰⁰ Congress clearly knows how to write statutory language that unequivocally mandates action by executive officers, but it has chosen not to do so with regard to deportation.

Perhaps the most familiar case of this agency-level flexibility is the Deferred Action for Childhood Arrivals (DACA) program. President Obama instituted DACA through an executive order that instructed the federal agencies under his authority to defer the action of deportation for people who crossed the border as children.³⁰¹ Much has been written about DACA and whether the Chief Executive has the power to make such sweeping decisions that seemingly contradict the intent of Congress,³⁰² but it nevertheless shows the extreme flexibility that agencies have exercised over deportation decisions for the last decade.

This distinction between deportability and deportation means that IJs can still follow the statutory law by declaring noncitizens deportable, but they need not order or execute deportation. DHS and DOJ can then adequately implement the immigration sanctions outlined in the Membership Guidelines. Ultimately, these agencies should exercise the

²⁹⁹ See Boaz, *supra* note 107, at 416 (“Most individuals are expelled from the United States discretionarily—meaning that the federal government is not obligated to remove them from its territory, though it has the authority to do so.”).

³⁰⁰ Compare 8 U.S.C. §1226(c) (stating that “The Attorney General *shall* take into custody any alien who” falls into certain deportable categories, including noncitizens convicted of an aggravated felony), with 8 U.S.C. § 1228(a)(3)(A) (stating that the Attorney General “shall . . . to the extent possible” facilitate the completion of removal” for noncitizens convicted of an aggravated felony).

³⁰¹ See Chacon, *supra* note 136, at 719–20 (discussing the Obama administration’s implementation of executive discretion through DACA).

³⁰² Compare Ben Harrington, *An Overview of Discretionary Reprieves from Removal: Deferred Action, DACA, TPS, and Others*, CONG. RES. SERV. NO. 7-5700 (April 10, 2018) (citing DACA and Temporary Protected Status as decisions by immigration authorities to forego deportation), and ADAM COX AND CRISTINA RODRIGUEZ, *THE PRESIDENT AND IMMIGRATION LAW* 227 (2020) (rejecting the argument that “the Constitution prohibits agency leaders from using rules to guide the exercise of enforcement discretion by line-level officials within the administrative state”), with Patricia L. Bellia, *Faithful Execution and Enforcement Discretion*, 164 U. PA. L. REV. 1753, 1800 (2016) (expressing skepticism about the categorical exercise of enforcement discretion embodied in the Deferred Action for Parents of Americans (DAPA) program based on the “dubious” notion that such exercises of discretion are permitted if not statutorily prohibited)

deportation power according to the foundational principles of membership, but they are not mandated to do so for every deportable noncitizen.

C. *Judicial Dependence*

As a final administrative consideration, Membership Guidelines are even more amenable to administrative adjudication in immigration law than sentencing guidelines are in criminal law because of the differences in judicial power. Whereas sentencing guidelines or sentencing commissions cannot fully control state and federal judges who enjoy independence within the judiciary, IJs are prime candidates to follow the Membership Guidelines because they are not an independent judiciary.

Centralizing IJ decision-making to adhere to Membership Guidelines is not too different from what already takes place. Amit Jain has argued that IJs are mistakenly called “judges” because they are more akin to bureaucrats.³⁰³ This claim is premised on the fact that IJs are classified as attorney employees by the DOJ in their official job title.³⁰⁴ This lack of judicial independence is a facet of immigration court that makes IJs relatively easier to control by administrative fiat than are federal and state judges. Mary Holper tracked several different ways that the DOJ asserts control over IJs through appointing them through political favors, reassigning them, offering buyouts, enforcing a “gag rule” that does not allow them to express dissent from agency policies, among others.³⁰⁵ Researchers have also recently studied how implementing quota policies that require IJs to adjudicate a certain number of cases every year has increased the number of deportations in line with the Trump administration’s policy goals.³⁰⁶ And when these indirect influences over

³⁰³ See Amit Jain, *Bureaucrats in Robes: Immigration Judges and the Trappings of Courts*, 33 GEO. IMMIGR. L.J. 261, 266 (2019) (arguing that immigration court functions closer to a bureaucratic hearing than an actual courtroom).

³⁰⁴ See Denise Noonan Slavin and Dana Leigh Marks, *Conflicting Roles of Immigration Judges. Do You Want Your Case Heard by a “Government Attorney” or by a “Judge”?*, 16 BENDER’S IMMIGR. BULL. 1785, 1786 (2011) (“[O]n one hand there are circumstances where immigration judges are treated as attorneys working for or representing the U.S. Government, while on the other hand, their daily role and the duties they discharge mandate the traditional responsibilities that the title of ‘judge’ implies.”).

³⁰⁵ See Mary Holper, *JRAD Redux: Judicial Recommendation against Immigration Detention*, 91 GEO. WASH. L. REV. 561, 569 (2023) (listing eight such categories of DOJ control over IJs).

³⁰⁶ See Elise N. Blasingame, *et al.*, *How the Trump Administration’s Quota Policy Transformed Immigration Judging*, 118 AM. POL. SCI. REV. 1688, 1694–99 (2024) (finding that a performance quota implemented for IJs increased *in absentia* and merits-based removal orders).

IJs do not sufficiently move the needle, the Attorney General has unique appellate jurisdiction over immigration courts that allows them to refer immigration cases to themselves for review, which then establishes binding precedent upon IJs.³⁰⁷ At a time when IJs suffer from record-level backlog and judicial economy suffers from overly complex deportation decisions,³⁰⁸ Membership Guidelines might be a welcome change that can more quickly resolve cases without multiple hearings and years of waiting for a resolution. These methods of indirect and direct control make the agency-level decision of implementing the Membership Guidelines all the more pragmatic, leaving IJs little choice but to faithfully apply the new system.

Reformists have argued for years that one way to promote a fair and equitable immigration system is to reform IJs into an independent judiciary,³⁰⁹ but the Membership Guidelines would benefit from the opposite approach. Ironically, the lack of judicial independence and the large amount of indirect and direct administrative control over IJs is what makes the Membership Guidelines possible. Reformers should consider leaning into this judicial dependence as a strategic concession to lose the battle yet win the war of mitigating the discretionary disparities caused by the current system.

CONCLUSION

The deportation system is broken. The systemic failures of discretion, nonuniformity, and disproportionality have combined to create a deportation system that no longer serves its original goals of accurately determining and enforcing national membership. The size and scope of deporting hundreds of thousands of noncitizens every year for low-level

³⁰⁷ See Alberto R. Gonzales and Patrick Glen, *Advancing Executive Branch Immigration Policy through the Attorney General's Review Authority*, 101 IOWA L. REV. 841, 846–47 (2016) (explaining the certification power that the Attorney General may exercise to assert control over precedent in immigration court).

³⁰⁸ See *Immigration Court Quick Facts*, TRAC IMMIGR. (last visited Jan. 31, 2026), https://tracreports.org/immigration/quickfacts/eoir.html#eoir_backlog (recording the existing backlog of over three million cases in immigration court and over two million asylum cases waiting to be heard).

³⁰⁹ See, e.g., Stephen H. Legomsky, *Deportation and the War on Independence*, 91 CORNELL L. REV. 369, 370–71 (2006) (arguing that the evisceration of IJ decisional independence has wrought havoc on the immigration court system); see also Christine Lockhart Pearch, *The FBA's Proposal for the Creation of a Federal Immigration Court*, FED. LAWYER 10, 10–11 (April 2014) (detailing the Federal Bar Association Immigration Law section's proposal for Congress to create an Article I specialized court to handle immigration cases).

immigration violations has allowed these systemic failures to exacerbate with little hope for reform after decades of congressional inaction.

The Membership Guidelines refocus the deportation system on membership by addressing the failures of the status quo. By learning from the biggest mistakes of sentencing guidelines in the criminal arena, the Membership Guidelines capture this era's crimmigration commitments in a way that mitigates the harms of the systemic failures above. These design decisions are meant to foster further conversation that will allow the Membership Guidelines to improve with additional policy expertise. As with all policy changes, costs and benefits must be considered as well as the larger ripple effects change might bring to other parts of the immigration system. But given the lack of legislative reform over the past three decades contrasted with the creative use of executive immigration power over the same time period, this Article hopes that it can spark an innovation ethic towards reform in one of the most impactful system of sanctions in the legal field.³¹⁰

³¹⁰ See *supra* notes 22–23 and accompanying text.